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**Supreme Court of  
the State of New York**

New York County: Criminal Term Part 32

N.Y. Ind. No. 75657/2024

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**THE PEOPLE OF THE STATE OF NEW YORK,**

*Respondent,*

*- against -*

**LUIGI MANGIONE,**

*Defendant-Movant.*

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**POST-HEARING MEMORANDUM OF LAW  
IN OPPOSITION TO  
DEFENDANT'S MOTION TO SUPPRESS**

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MARCH 2, 2026

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March 2, 2026

**MEMORANDUM OF LAW**

**INTRODUCTION**

On the morning of December 4, 2024, defendant crept up behind Brian Thompson, a 50-year-old father of two, on a midtown Manhattan sidewalk and shot him twice at close range. One of the bullets pierced Thompson’s heart and liver, killing him almost immediately.

After confirming that Thompson was dead, defendant fled the scene and succeeded in vanishing for several days despite investigators’ extensive efforts to track down the perpetrator of this sensational crime. During that time, NYPD officers publicized images of defendant that they had managed to cull from surveillance footage. And five days after the shooting, police officers in Altoona, Pennsylvania – a small city about 250 miles from New York City – received a report that somebody who looked like the New York City assassin was at a local McDonald’s. The Altoona officers had

no forewarning that the perpetrator of this high-profile murder would appear in their jurisdiction, and they were skeptical of the report's accuracy. But when two Altoona officers responded, one of them immediately recognized defendant as the person depicted in the publicized images of the New York City shooter. After defendant showed the Altoona officers a fake driver's license, they proceeded, in deliberate and painstaking fashion, to arrest him on Pennsylvania charges for the fake license and process his arrest in accordance with Pennsylvania search-and-seizure law. During that processing, the officers conducted a limited search of defendant's backpack at the McDonald's and then a thorough inventory search of that backpack at the Altoona stationhouse, where they documented every item – including the murder weapon, a silencer, ammunition, and various damning writings – in that backpack.

At every step, the Altoona officers responded to this unexpected and alarming situation reasonably. And reasonableness is, of course, the “ultimate touchstone of the Fourth Amendment.” *People v. Pena*, 36 N.Y.3d 978, 979 (2020) (quoting *Riley v. California*, 573 U.S. 373, 381 [2014]). But defendant nevertheless seeks suppression of evidence recovered from his backpack, largely on the ground that the Altoona officers did not follow New York search-and-seizure law in processing his arrest in Pennsylvania on Pennsylvania charges.

That argument fails for three reasons. *First*, the Altoona officers acted reasonably in processing defendant's arrest in accordance with Pennsylvania search-and-seizure law, without regard for what New York search-and-seizure law might call for (*see infra*

Point I.A-I.B). After all, the Altoona officers were unfamiliar with New York search-and-seizure law. Nor could they be expected to familiarize themselves with that body of law in advance of defendant's arrival, which they had no way of anticipating. Nor could they be expected to know that, although they were arresting defendant in Pennsylvania on Pennsylvania charges, their conduct would be assessed under New York search-and-seizure law. There is thus no basis to use the exclusionary rule to sanction Altoona officers for conduct that they correctly understood to be lawful in their jurisdiction. *Second*, the extensive hearing record demonstrates that, even under New York search-and-seizure law, Altoona officers acted lawfully in processing defendant's arrest. New York's law of exigency justified their limited search of defendant's backpack at the McDonald's (*see infra* Point I.C). And New York's law governing inventory searches justified their thorough search of defendant's backpack at the Altoona stationhouse (*see infra* Point II). *Third*, even assuming – counterfactually – some legal problem with the search at the McDonald's and the inventory search, Altoona officers obtained a search warrant for the backpack, thereby establishing an independent source for recovering the backpack's contents (*see infra* Point III).

Defendant also seeks suppression of various statements he made to police officers at the McDonald's and to corrections officers during his subsequent incarceration. But all of those statements are admissible on a variety of grounds, which are detailed below in Point IV.

Defendant's motion to suppress should be denied in its entirety.



## **PROCEDURAL BACKGROUND**

In omnibus papers dated April 30, 2025, defendant moved to suppress, *inter alia*, statements he made to law enforcement and evidence seized from his backpack. In response, the People consented to a hearing on those issues. This Court conducted that hearing on December 1, 2, 4, 5, 8, 9, 11, 12, 16, and 18, 2025.

### **THE EVIDENCE AT THE SUPPRESSION HEARING**

#### **A. The Assassination of Brian Thompson**

At 6:44 a.m. on December 4, 2024, 50-year-old Brian Thompson – the CEO of UnitedHealthcare – was walking outside the Hilton Hotel at 1335 Avenue of the Americas when a man wearing all black appeared behind him, drew a pistol outfitted with a silencer, and shot him in the back and the leg. As Thompson collapsed to the ground, the shooter tried to continue firing, but his pistol appeared to malfunction. The shooter then walked up to Thompson’s motionless body – apparently to confirm that Thompson was dead – before fleeing the scene. At no point did the shooter appear to say anything to the victim or take anything from him. The entire episode was captured on surveillance footage (People’s Exhibit [“PX”] 3B [video of shooting]).

#### **B. The NYPD Investigation**

Lieutenant DAVID LEONARDI, a supervisor at NYPD’s Manhattan South Homicide Squad, responded to the scene and saw that various pieces of ballistics evidence – including three live cartridges and three shell casings – had been recovered (Leonardi: 1397; PX 12A [search warrant application]). The shell casings were marked

with the words “deny,” “delay,” and “depose” – words used to criticize the tactics of health insurers (Leonardi: 1398; PX 12A).

At Lieutenant Leonardi’s direction, a team of detectives interviewed witnesses and canvassed for surveillance footage (Leonardi: 1397). The video canvass yielded footage of the shooting as well as footage that showed that the shooter had been inside a nearby Starbucks shortly before the shooting, had left the scene of the shooting on a bicycle, and had traveled through Central Park to West 86th Street and Amsterdam Avenue, where he got into a taxicab (Leonardi: 1398-1401; PX 1A-1E [surveillance stills], 1L-1N [surveillance stills]). While tracing the shooter’s path, investigators recovered a backpack that contained, among other things, Monopoly money (Leonardi: 1400).

The video canvass ultimately allowed investigators to trace the shooter back to a hostel (Leonardi: 1401-02). There, investigators were able to obtain photographs that captured the shooter’s full face (Leonardi: 1401-02; PX 1F-1K [surveillance stills]). They also learned that the shooter had checked into the hostel using a fake New Jersey driver’s license bearing the name Mark Rosario (Leonardi: 1404-05).

**C. NYPD publicizes information about the shooting in order to obtain the public’s assistance in catching the shooter.**

NYPD investigators shared some of the footage and information they had gathered with the Deputy Commissioner for Public Information (“DCPI”). DCPI, in turn, made various posts about the shooting on social media and disseminated certain

images of the shooter and pieces of information about the shooting to the media (DCPI Sergeant CHRISTOPHER McLAUGHLIN: 5-7).

On the day of the shooting, DCPI posted various photos of the shooter – including photos of him in the Starbucks, a photo of him during the shooting, and a photo of him fleeing on the bicycle – on NYPD’s Facebook account (McLaughlin: 8-9; PX 1A-1D). Alongside the photos, DCPI wrote:

WANTED for HOMICIDE on 12/4/24 at approximately 6:40 AM, in front of the Hilton Hotel, located at 1335 Avenue of the Americas in Manhattan, this individual discharged a firearm, striking a 50-year-old man in the chest causing his demise. There is a reward of up to \$10,000 for information regarding this homicide. Please contact NYPD Crimestoppers: Visit <http://crimestoppers.nypdonline.org>. DM NYPD Crimestoppers. Call 1-800-577 TIPS (8477)

(McLaughlin: 9; PX 1D). That same day, DCPI shared video of the shooting and photos of the shooter with national media outlets, which in turn broadcast them (McLaughlin: 15; PX 2, slides 1-2).

The next day, DCPI posted photos that captured the shooter’s full face on NYPD’s Facebook and X accounts (McLaughlin: 10-11; PX 1F). Alongside those photos, DCPI wrote:

UPDATE: Above are photos of a person of interest wanted for questioning regarding the Midtown Manhattan homicide on Dec 4. This does not appear to be a random act of violence; all indications are that it was a premeditated targeted attack. The full investigative efforts of the NYPD are continuing and we are asking for the public’s help – if you have any information about the case, call Crime Stoppers at 1-800-577-TIPS (8477)

(McLaughlin: 11-12; PX 1F-1G). On December 8, DCPI posted additional photos of the shooter on Instagram (McLaughlin: 13-14; Leonardi: 1403; PX 1L-1N).

The shooting received widespread media coverage (*see* PX 2 [PowerPoint of media coverage]). Fox News, for instance, showed a clip of the shooting; showed various photos of the shooter; ran a headline that read, “United Healthcare CEO shooter ‘KNOWS WHAT HE’S DOING’: Former DC homicide detective”; showed video of NYPD scuba divers searching a Central Park pond for the murder weapon; and reported that the shooter had paid in cash and used a fake identification at the hostel where he stayed before the shooting (PX 2, slides 1-6).<sup>1</sup>

**D. Police officers in Altoona, Pennsylvania receive a report that somebody resembling the shooter is at a local McDonald’s.**

At 9:14 a.m. on December 9, 2024, a manager at a McDonald’s in Altoona, Pennsylvania<sup>2</sup> called 911 to report that some customers had noticed that another customer resembled “the CEO shooter from New York” (Blair County 911 Operator EMILY STATES: 56; PX: 5A [911 recording]). She specified that the person in question was sitting by the bathroom and wearing a black jacket, tan beanie, and blue medical mask (States: 65-66; PX 5A).

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<sup>1</sup> The press coverage did not include the particular name used on the fake identification because NYPD had not publicized that information (Leonardi: 1405).

<sup>2</sup> Altoona is a small city of about 50,000 people in Blair County in central Pennsylvania, about five hours from New York City by car (Police Officer JOSEPH DETWILER: 171-74; Lieutenant WILLIAM [“TOM”] HANELLY: 942, 944). Its police force consists of 65 police officers (Detwiler: 172; Hanelly: 940-42).

The 911 operator dispatched Altoona Police Department (“APD”) officers to respond to the call, which the dispatch center designated “low” priority (States: 59; PX 5B [radio transmission]; PX 5C [dispatch records], pp. 2, 5-6). Police Officer JOSEPH DETWILER, who was in a patrol car with probationary Police Officer TYLER FRYE, responded (States: 59-60; Detwiler: 175-77; Frye: 371-72). Detwiler had been closely following coverage of the shooting and had seen video of the shooting as well as photos of the shooter (Detwiler: 178-88; PX 1-3). He had found the incident “awful” and “disturb[ing],” particularly because the shooter appeared to have been lying in wait for his victim (Detwiler: 187). He had seen a report that the words “Deny,” “Delay,” and “Depose” were inscribed on the shooter’s bullets (Detwiler: 229). And he had seen a report that investigators had not yet found the murder weapon, which appeared to be a black semi-automatic handgun with a silencer affixed to it (Detwiler: 184-85, 188). Media coverage of the shooting was so intense that, at one point, Detwiler felt as though he saw the shooter more than he saw his own children (Detwiler: 299).

Detwiler responded to the dispatch, “10-4, we’ll be on that,” but he did so in a skeptical tone of voice because he did not think that he was going to find the New York City shooter at a McDonald’s in Altoona (Detwiler: 176; PX 5B [Radio Transmission]). Lieutenant WILLIAM (“TOM”) HANELLY – who had overheard the dispatch and shared Detwiler’s skepticism about the report – sent Detwiler a text message promising to buy him a hoagie from a local restaurant if the report turned out to be correct (Detwiler: 176-77; Hanelly: 943-45, 998).

Given the remoteness of the possibility that the New York City shooter was at the McDonald's, Officer Detwiler did not activate his lights or sirens while driving there (Detwiler: 178). He and Officer Frye arrived at the McDonald's at about 9:28 a.m. (PX 6A1 [Detwiler body-worn camera ("BWC") footage], 6B1 [Frye BWC footage]). As they entered, somebody said, "It's him back there" (Detwiler: 217; PX 6A1: 9:28:52). Detwiler saw that a man – defendant – was sitting alone at a table near the bathrooms and wearing a brown beanie and blue medical mask, just as the 911 caller had reported (Detwiler: 196; PX 6A1: 9:29:05-9:29:14). A backpack was sitting on the floor, at defendant's feet (PX 6B1: 9:29:05-9:29:09).

**E. Officer Detwiler recognizes defendant as the suspect in the New York City shooting.**

Defendant was working on his laptop when Officer Detwiler approached and asked him to briefly pull his mask down (Detwiler: 197; PX 6A1 & 6B1: 9:29:12-9:29:16). When defendant did so, Detwiler immediately recognized him as the man who appeared in the photos of the suspect in the New York City shooting (Detwiler: 197-198). Because of the extraordinarily calculated and violent nature of that crime, Detwiler considered defendant to pose a high security risk (Detwiler: 227-29).

**F. Defendant produces a fake driver's license.**

Officer Detwiler asked defendant for his name, and defendant identified himself as Mark Rosario (PX 6A1: 9:29:20-9:29:26). Without divulging the extent of his concerns about defendant, Detwiler said, "Someone called. They thought you were

suspicious” before asking defendant for his identification (PX 6A1: 9:29:26-9:29:32). Defendant handed over a New Jersey driver’s license bearing the name Mark Rosario (Detwiler: 198; PX 6A1 & 6B1: 9:29:33-9:29:41). Detwiler instructed Officer Frye to run that license through NCIC – a database containing Department of Motor Vehicles information from every state (Detwiler: 198; Hanelly: 1004-05; PX 6A1 & 6B1: 9:29:43-9:29:45). Officer Frye then stepped away and relayed the information on the driver’s license to Blair dispatch (Frye: 377-378; PX 6B1: 9:29:44-9:29:57). The dispatcher apparently misheard the license number that Frye read aloud and consequently searched for the incorrect license number (Blair County 911 Coordinator EMILY STATES: 60).

Meanwhile, Officer Detwiler asked defendant if he was from New Jersey, and defendant said that he was (PX 6A1: 9:29:47-9:29:50). Detwiler then asked, “Were you up in New York recently?” Defendant replied “yes sir” (PX 6A1: 9:29:57-9:30:02). As defendant took food out of a McDonald’s bag on the table, Detwiler asked what defendant was doing in New York (Detwiler: 200; PX 6A1: 9:30:16-9:30:18). Instead of answering, defendant unwrapped a sandwich and prepared to eat it (PX B1: 9:30:17-9:30:22). At that point, Detwiler – mindful of the fact that the gun from the New York City shooting had not been found – asked defendant to stand up to be frisked. Detwiler briefly frisked defendant – who was wearing multiple layers of clothing – without finding anything (Detwiler: 201-02; PX 6A1 & 6B1: 9:30:22-9:30:52).

Defendant sat back down while Officer Frye stood nearby and Officer Detwiler went outside (Detwiler: 202; PX 6A1 & 6B1: 9:30:52-9:30:58). Frye tried to make small

talk with defendant, asking “What’s going on, man?” and what had brought him to Altoona, but defendant responded that he was going to wait to see “what you guys are up to” (Frye: 379; PX 6B1: 9:31:26-9:31:36). When Frye explained that they had been called to the McDonald’s because someone had said that he was suspicious, defendant protested that he was “just trying to use the Wi-Fi” (Frye: 379; PX 6B1: 9:31:41-9:31:47). Frye replied, “I’m not saying you did anything wrong, I’m just saying we got called here for that” (PX 6B1: 9:31:47-9:31:51). Frye then asked whether defendant was a college student; and defendant said that he was not (PX 6B1: 9:31:57-9:32:02).

**G. Officer Detwiler calls for backup.**

Meanwhile, Officer Detwiler went outside, called Lieutenant Hanelly, who was at the APD stationhouse, and said,

Can you start over this way? Tom, it’s him. It’s him. It’s – yes, he’s here, Tom, it’s him. I’m not kidding. He’s real nervous, he’s not talking too much. I asked if he’d been up in New York recently and – Tom, I’m about 100% sure it’s him. Why don’t you come out here, Tom? Okay. I appreciate it. Okay. Bye.

(Detwiler: 203-04; PX 6A1: 9:31:24-9:32:07). Lieutenant Hanelly – cognizant of the fact that defendant was wanted for murdering somebody with a firearm – immediately left for the McDonald’s along with Sergeant JON BURNS, Corporal Garrett Trent, and Officer SAMUEL McCOY (Hanelly: 950, 1029; McCoy: 1125-26).



#### **H. Officers Detwiler and Frye remain at the McDonald's with defendant.**

Officer Detwiler then returned inside the McDonald's, where he again asked whether defendant was from New Jersey, and defendant again said that he was (PX 6A1 & 6B1: 9:32:08-9:32:18). When asked what he was doing in Altoona, defendant said that he was homeless (PX 6A1 & 6B1: 9:32:19-9:33:00). During that exchange, Detwiler provided the license number for defendant's identification over the radio, as Officer Frye had already done (Detwiler: 204-05; PX 5D [Blair 911 Report]; PX 6A1 & 6B1: 9:32:24-9:32:51). This time, Blair dispatch correctly transcribed the license number and, at 9:33 a.m., reported that there was no record for the license – an indication that the license was fake (States: 69-70; Detwiler: 198-99; PX 5D: 14).

Meanwhile, Detwiler asked defendant whether he had been to New York lately. This time, defendant answered that he had not (Detwiler: 207; PX 6A1 & 6B1: 9:33:08-9:33:14). After a brief pause, Officer Detwiler told defendant, "We're just trying to confirm your identity and then we'll get out of here" (Detwiler: 207-08; PX 6A1 & 6B1: 9:33:22-9:33:26). Although Detwiler in fact had no intention of letting defendant go, he suggested otherwise in order "to keep things normal, make him feel like things were gonna move on and he was going to be able to go" (Detwiler: 208). In keeping with that strategy, Detwiler told defendant that somebody had complained that he had stayed too long at the McDonald's, in violation of the restaurant's time limits on customer stays (Detwiler: 209; PX 6A1 & 6B1, 9:33:31-9:33:56). Defendant responded by checking his receipt, observing that he had been there for 40 minutes, and explaining

that he “was just trying to get out of the rain” (Detwiler: 210; PX 6A1 & 6B1: 9:33:35-9:34:07). As they continued to wait for word about the driver’s license, defendant began eating a hash brown that had been sitting on the table (PX 6A1 & 6B1: 9:34:20-9:34:57).

While defendant ate, Officer Detwiler asked what had brought him to Altoona from New Jersey; defendant stated that he had not been to New Jersey for a while (Detwiler: 209; PX 6A1 & 6B1: 9:34:58-9:35:08). When asked whether he was from New Jersey, defendant said that he was from the “DMV” area (Detwiler: 209-10; PX 6A1 & 6B1: 9:35:17-9:35:38).

Officer Detwiler then feigned frustration about being repeatedly called to that McDonald’s, saying that he had been there six times in the past week because of reports that customers were staying too long (Detwiler: 210; PX 6A1 & 6B1: 9:36:03-9:36:10). Defendant responded by pointing out that his receipt was from 8:55 and saying, “I wish they would have told me. I would have gotten up and left” (PX 6A1 & 6B1: 9:36:10-9:36:22). As defendant finished eating his hash brown, Detwiler said “Come on, Blair” out loud, explaining that he was referring to “our dispatch center,” which seemed to be backed up with other requests (PX 6A1 & 6B1: 9:36:22-9:37:03). Defendant then began eating a breakfast sandwich that had been sitting on the table, prompting Detwiler to ask whether it was the steak sandwich. When defendant said that it was, Detwiler replied that it was his favorite (Detwiler: 211; PX 6A1 & 6B1: 9:37:21-9:38:13).

As defendant continued to eat, Officer Detwiler again feigned impatience with the dispatch center, stating, “Come on Blair, we got other calls” (Detwiler: 210-12; PX

6A1 & 6B1: 9:38:44-9:38:46). Defendant then asked the officers what he should do next time. Detwiler suggested, “Just maybe not stay as long,” while Officer Frye said, “Probably wouldn’t come back to this McDonald’s either” (Detwiler: 212, 223; PX 6A1 & 6B1: 9:38:54-9:39:06). After another pause, Frye asked Detwiler whether dispatch knew that it “need[ed] to run that again or do something different” (PX 6A1 & 6B1: 9:39:29-9:39:32). Detwiler then continued his efforts “to keep things normal and calm” by whistling along to “Jingle Bell Rock,” which was playing on the restaurant’s PA system (Detwiler: 213; PX 6A1 & 6B1: 9:40:13-9:40:26).

**I. Lieutenant Hanelly tries to contact NYPD investigators but is unable to reach them.**

Meanwhile, as Lieutenant Hanelly made his way to the McDonald’s, he began trying to contact NYPD investigators about the case, which he had seen covered in the media (Hanelly: 945-46, 950-54). When he managed to reach a New York City 911 operator, he explained that APD might have located the New York City shooter (PX 13A [911 recording]). Hanelly was still on the phone with that operator when he arrived at the McDonald’s, took the Mark Rosario license from Officer Detwiler, and relayed information from it to the 911 operator (Hanelly: 956-59; PX 6A1 & PX 6B1: 9:41:00-9:42:35; PX 13A).<sup>3</sup> The operator told him that somebody from NYPD would call him

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<sup>3</sup> During the call, Hanelly can be heard asking other APD officers whether the suspect had been patted down because he was concerned that the suspect “might still be armed and dangerous” (Hanelly: 957; PX 13A).

back (PX 13A). Until that point, APD had not communicated with anybody in New York City in any way about the search for Brian Thompson's killer (Hanelly: 949).

While Lieutenant Hanelly was still on the phone, Officer Detwiler moved defendant's backpack, which had been on the floor next to defendant's feet (PX 6A1 & 6B1: 9:41:09-9:41:12). Detwiler was concerned that the backpack, which was noticeably heavy, might contain a firearm (Detwiler: 214, 219-20).

#### **J. Other APD officers arrive at the McDonald's.**

Around the time that Lieutenant Hanelly's call with New York City 911 ended, Sergeant Burns and Corporal Trent entered the McDonald's (Burns: 1042; PX 6A1: 9:41:37-9:41:54). Burns – who shared the other officers' sense that defendant, as a suspected killer, should be considered “armed and dangerous” – immediately signaled to ask whether defendant had been patted down (Burns: 1042-43; PX 6A1: 9:41:47-9:41:52). Detwiler answered, “Yes” (Detwiler: 221; PX 6A1: 9:41:50-9:41:51).

Officer McCoy and probationary Officer Samuel Yeager entered the McDonald's shortly thereafter (PX 6A1 & 6C: 9:42:35-9:42:38). At Officer Detwiler's direction, McCoy stood next to defendant, while Detwiler went outside to speak to Hanelly (Detwiler: 215-16; PX 6A1: 9:42:38-9:42:52). Once outside, Detwiler reiterated to Hanelly that defendant was “100%” the person wanted for the New York City shooting (Detwiler: 224; PX 6A1: 9:42:53-9:43:02). Sergeant Burns and Corporal Trent soon joined them outside, where they pulled up pictures of the suspect on their phones (Detwiler: 224-26; Hanelly: 960; PX 6A1: 9:43:02-9:43:30).

Meanwhile, Officer McCoy stood next to the table where defendant was sitting (PX 6B1 & 6C: 9:42:44-9:42:49). He asked defendant whether he was carrying any weapons, but defendant did not respond (McCoy: 1146; PX 6B1 & 6C: 9:42:49-9:42:52). Mindful of the erratic and desperate behavior that he had seen in other homicide suspects, McCoy confirmed with Officer Frye that defendant had already been patted down (McCoy: 1128, 1157-58; PX 6B1 & 6C: 9:42:51-9:42:53). McCoy then asked defendant if the various items on and around the table – including a backpack, a laptop, and a pair of gloves – were his. When defendant confirmed that they were, McCoy moved them onto an adjacent table (McCoy: 1129, 1132, 1148; PX 6B1 & 6C: 9:42:56-9:43:06).

McCoy then asked defendant whether he “kn[e]w what all this nonsense [wa]s about.” Defendant answered that he was “going to find out I guess” (McCoy: 1129-30; PX B1 & C: 9:43:36-9:43:41). When McCoy commented that defendant was “soaking wet” and asked whether he had walked there, defendant said, “It’s raining, yeah” (PX 6B1 & 6C: 9:43:44-9:43:48). McCoy asked whether defendant had a car and whether he had walked there, but defendant responded that he was “just gonna let things play out” (PX 6B1 & 6C: 9:43:50-9:43:57). Defendant then joked, “Calling a couple more cars? This is a puffy jacket. I’m not very big” (PX 6B1 & 6C: 9:44:02-9:44:07). Officers McCoy, Frye, and Yeager were the only officers inside the McDonald’s with defendant when he made these statements to McCoy (PX 6B1 & 6C: 9:42:44-9:44:07).

**K. Defendant reveals his true name.**

Shortly before 9:45 a.m., Lieutenant Hanelly, Sergeant Burns, Corporal Trent, and Officer Detwiler went back inside the McDonald's (PX 6B1: 9:44:52-9:44:57). APD Officers CHRISTY WASSER and STEPHEN FOX arrived at the McDonald's around the same time (PX 6B1: 9:44:45-9:45:46). Because Blair 911 dispatch had not been able to find a record associated with the New Jersey driver's license bearing the name Mark Rosario, Hanelly called the "turnkey officer" at APD headquarters and asked him to run the name himself through NCIC (Hanelly: 961-62, 979). The turnkey officer's search, like Blair 911 dispatch's search, yielded no record (Hanelly: 979; PX 5B [radio transmissions]: 28:33-28:39).

At about 9:47 a.m., Lieutenant Hanelly told Officer Detwiler to give defendant "false ID" warnings – warnings about the illegality of orally providing a false name to the police (Detwiler: 235-36; Fox: 787-88; Hanelly: 963-64; PX 6A2 & 6G: 9:46:46-9:46:59). Detwiler walked over to the table where defendant was seated and said, "Hey listen man, you're under official police investigation right now. Um, if you give a false name to us again you're gonna be arrested for false ID. Okay, is that your name, Mark Rosio [sic], Mark Rosaro [sic]?" (PX 6B1 & 6E1: 9:47:00-9:47:14). Defendant answered that it was not, that his name was in fact Luigi Mangione, and that his date of birth was May 6, 1998 (PX 6B1 & 6E1: 9:47:14-9:47:42).

Officer Fox asked defendant why he had lied about his name, and defendant responded, "Clearly I shouldn't have" (PX 6B1 & 6E1: 9:47:43-9:48:04). When Officer

Frye followed up, “But why did you lie?” defendant answered “that was the ID I had in my wallet, I had a fake ID” (PX 6B1 & 6E1: 9:48:14-9:48:20). Fox confirmed, “you had fake ID?” and defendant nodded his head affirmatively before stating “Yes” (Fox: 788; PX 6B1 & 6E1: 9:48:22-9:48:26).

**L. Defendant receives *Miranda* warnings.**

At 9:48 a.m., Officer Fox provided defendant with *Miranda* warnings. Defendant confirmed that he understood (PX 6B1: 9:48:31-9:48:50). When Fox asked whether defendant wanted to talk to them, defendant hesitated before shaking his head (PX 6B1: 9:48:51-9:48:56). Fox then stated, “You’re not in custody at this point,” repeated the “false ID” warnings, and asked defendant why he had a fake identification; defendant responded that he was going to remain silent (Fox: 850-51; PX 6B1: 9:48:55-9:49:39).

Shortly before 9:50 a.m., Officer Fox – who did not know whether defendant had already been patted down – asked defendant to stand up for a pat-down (Fox: 789; PX 6B1: 9:49:56-9:49:58). Fox had seen news coverage about the shooting, including video of the shooting, photos of the shooter, reports of the shooter’s use of a silencer, reports of the engravings on the shell casings, and reports that investigators were still searching for the murder weapon (Fox: 776-82). The details of the shooting made Fox – who understood that the engravings on the bullets were of words commonly used to protest the operations of health insurers – particularly concerned that defendant might be carrying weapons (Fox: 778-79, 789).

### **M. Defendant is detained in handcuffs.**

As defendant stood for the pat-down, he volunteered that he had a jar of peanut butter on him (PX 6B1: 9:49:58-9:50:02). Officer Fox asked whether defendant had any weapons on him, and defendant said that he did not before mentioning that he had a pocket knife (Fox: 790, 859; PX 6B1: 9:50:05-9:50:15). At that point, Sergeant Burns relayed an instruction from Lieutenant Hanelly to handcuff defendant, and Fox did so (Fox: 791; Hanelly: 1029; Burns: 1044; PX 6A1 & 6B1: 9:50:15-9:51:03). Fox then removed the knife – a switchblade with a three- or four-inch long blade – from defendant’s pocket, and Officer Frye placed it on the adjacent table with defendant’s other property (Fox: 926; PX 6B1 & 6E1: 9:51:15-9:51:30). Fox also stated over the radio to “mark one in detention” (Fox: 792; PX 6B1: 9:51:20-9:51:23).<sup>4</sup>

After defendant was handcuffed, an officer told him that he could sit back down if he wanted to. Defendant declined, choosing instead to remain standing (Fox: 799; PX 6B1: 9:51:44-9:51:50). At that point, he was five to six feet from the table where his backpack and other property were sitting (Fox: 798; McCoy: 1135-36; PX 6D: 9:54:04). In the ensuing minutes, only Officer Frye stood between the backpack and defendant, who – as the officers recognized – was still capable of kicking, shoving, and running (Detwiler: 359; Wasser: 750-51; Fox: 799; McCoy: 1135-36; PX 6D: 9:54:04).

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<sup>4</sup> A suspect “in detention” may be released depending on how the investigation develops (Frye: 392-93; Fox: 791; Burns: 1045).



Meanwhile, Officer Fox stepped outside with Officer Detwiler and said, “that’s one hundred percent him . . . the shooter checked into the hostel with a fake ID” (Detwiler: 245-46; Fox: 800; PX 6A2: 9:53:53-9:53:58). A few minutes later, after Fox and Detwiler had gone back inside, defendant asked, “Can I ask why there so many cops here?” Officer McCoy replied that they were “just trying to figure it out” (McCoy: 1137-38; Frye: 395-96; PX 6B1: 9:56:29-9:56:36).

**N. Defendant is placed under arrest for forgery and tampering under Pennsylvania law.**

By then, Lieutenant Hanelly had been considering what charges could be lodged against defendant for producing a fake driver’s license (Hanelly: 967). At 9:53 a.m., he spoke to Blair County District Attorney Peter Weeks and First Assistant District Attorney NICHOLE SMITH, who advised that defendant could be charged with the Pennsylvania crimes of forgery and tampering (Smith: 550-52; Hanelly: 969-71).

Shortly before 9:58 a.m., defendant was still standing five to six feet from his backpack and other property when Lieutenant Hanelly instructed his officers to take defendant into custody (Detwiler: 247; Wasser: 582; Hanelly: 972; PX 6C1: 9:57:50-9:57:55). As Officers Detwiler and Frye each took defendant by an arm, Officer Wasser began to put on a pair of blue rubber gloves, and Officer McCoy confirmed that they were “gonna take him in for 4104 [tampering]” before announcing over the radio, “Blair 8, you can mark that male in custody” (Wasser: 583-84; McCoy: 1141; PX 6C & 6E1: 9:57:57-9:58:14).

### **O. Officers search defendant's person and backpack incident to arrest.**

As soon as defendant was formally placed in custody on the Pennsylvania charges, APD officers began searching his person and his backpack in accordance with APD's standard procedures. Every APD officer had received training in Pennsylvania criminal law, including Pennsylvania search-and-seizure law (Detwiler: 170-71; Wasser: 570-71; Fox: 772-73; Hanelly: 936-37; Burns: 1035-36, 1085).<sup>5</sup> APD General Order 1.2.2(C)(1)(a)(1) provided that, upon a person's arrest, officers could search "clothing worn by the person and any bags or packages they may be in possession of at the time and place of arrest" (PX 10A [General Order 1.2]: 5; *see also* Detwiler: 287; Wasser: 629-30; Fox: 895-96; Burns: 1104-05). In keeping with that policy – which, as APD officers understood, comported with Pennsylvania law – APD officers routinely conducted warrantless searches of arrestees' bags incident to arrest, whether or not the arrestee was handcuffed (Detwiler: 285-86, 288, 290-91; Wasser: 630-31, 686-87, 754-55, 767-68; Fox: 807-08, 895-99; Hanelly: 973, 985, 1022-24, 1032-33; Burns: 1051, 1092, 1105; McCoy 1139-40; APD Evidence Custodian GEORGE FEATHERSTONE: 1267-68).<sup>6</sup>

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<sup>5</sup> None of the APD officers were familiar with New York search-and-seizure law (Detwiler: 284, 288; Frye: 445-46, 520; Fox: 773; Hanelly: 937; Burns: 1036, 1085-1086; McCoy: 1141; Featherstone: 1324).

<sup>6</sup> Indeed, at least some APD officers appear to have been exceptionally well-versed in the relevant decisional law. At the hearing, Officer Fox cited the decision *Commonwealth v. Guzman* for the proposition that "no further justification other than the lawful custodial arrest is needed, therefore the officer does not need the fear of a firearm or bomb in a vehicle or in a bag to search that bag. The lawful custodial arrest is enough" (Fox: 896-99).

Officers Wasser and Fox thus understood themselves to be authorized to search defendant's backpack regardless of the particulars of his case (Wasser: 631, 686-87; Fox: 807-08). The particulars of this case did, however, inform their thought process about how to search defendant's backpack.<sup>7</sup> Reports that the murder weapon had not been found heightened concerns about the possibility that it was in the backpack (Detwiler: 188; Fox: 805, 874-75). And the sensational nature of the shooting – with its seemingly political message – heightened concerns that defendant might be carrying explosives (Wasser: 627-28; Fox: 805-06, 877). Because of that concern, Fox wanted to move the backpack as little as possible before clearing it for explosives (Fox: 877).

Before the officers opened the backpack, Officer Fox – suspecting that “there is probably something else in that bag that could harm human life” – asked defendant, “Anything in that bag that we need to know about?” (Detwiler: 249; Wasser: 585; Fox: 804; PX 6A3 & 6E1: 9:58:12-9:58:15). Wasser froze as defendant responded, “I’m just going to remain silent” – a response that did nothing to allay the officers’ concerns (Wasser: 585, 628-29, 672-73; Fox: 804-08; PX 6B1 & 6E1: 9:58:10-9:58:19). She then pulled the backpack – which was noticeably heavy – toward her, unzipped its main

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<sup>7</sup> In following the news, Wasser – like Fox – had seen that the CEO of a health-insurance company had been shot in the back with a handgun that had a silencer affixed to it, had seen how the murderer had not taken any property, and had heard that the murder weapon had not been recovered (Wasser: 574-75, 577, 749).

compartment, and removed a sandwich as well as a loaf of bread (Wasser: 583, 586; PX 6E1: 9:58:18-9:58:35).

A few feet away, Officers Detwiler, Frye, and McCoy unzipped defendant's coat, unzipped the jacket underneath it, and searched the pockets of the various layers of clothing he was wearing (Detwiler: 251; PX 6C: 9:58:28-9:59:47).<sup>8</sup> Over the ensuing couple of minutes, they recovered various items – including a zip pouch, a flashlight, a piece of paper, and a wallet – from defendant's pockets (Detwiler: 248-51, 254-55; PX 6A3, 6B1, 6C, 6D1: 9:58:28-10:00:06). All of the items found on defendant's person were collected in his brown beanie, which Detwiler took when he and Frye escorted defendant out of the McDonald's to their patrol car (Detwiler: 254-55, 268; PX 6A3, 6B1: 10:00:36-10:01:35).

Meanwhile, Officers Wasser and Fox continued to look through defendant's backpack (PX 6E1: 9:58:36-9:58:50). At one point, Corporal Trent approached them and asked, "Why don't we go through that back at the station?" before adding, "I mean as long as you're sure there's no bombs or anything in it" (Wasser: 587; Fox: 818-19; PX 6E1: 9:58:48-9:58:54). Wasser frowned and said, "I don't know. That's why we want to make sure there's nothing in there that's gonna . . . ," curling her lip and making a face as her voice trailed off (Wasser: 587-88; Fox: 819; PX 6E1: 9:58:54-9:58:58). Fox

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<sup>8</sup> Officers Detwiler and Frye estimated the distance to be two or three feet (Detwiler: 267; Frye: 506). Officers Wasser and Fox estimated four or five feet (Wasser: 751; Fox: 809, 872, 874).

noted that he would rather find any explosives at the McDonald's, before transporting them to the station (Wasser: 588; Fox: 819; PX 6E1: 9:59:00-9:59:04). And Wasser then talked about how she did not want to “pull a Moser” – a reference to an APD officer who had infamously transported a pipe bomb back to the stationhouse (Wasser: 588-89; Fox: 819-20; Burns: 1057; PX 6E1: 9:59:02-9:59:06).<sup>9</sup>

Officer Wasser next removed a faraday bag – a bag designed to block cellphone signals – from the backpack, opened it, and found that it contained a cellphone, a passport, and another wallet (Fox: 810, 820; PX 6E1 & 6F1: 9:59:15-10:00:00). After handing the passport to another officer to ascertain defendant's name, Wasser returned the other items to the faraday bag (PX 6E1 & 6F1: 10:00:00-10:00:14). Officer Fox then retrieved from the backpack two pieces of cardboard that were taped together, separated them, and found a piece of computer equipment inside (Wasser: 590; Fox: 811, 820-821, 832-33; PX 6E1 & 6F1: 10:00:17-10:00:30). As Fox was inspecting that item, Wasser removed an envelope from the backpack before placing it back in the backpack (PX 6E1 & 6F1: 10:00:34-10:00:40).<sup>10</sup>

At about 10:01 a.m., Officer Wasser removed a pair of wet underwear from the backpack and unrolled it to reveal a loaded magazine for a handgun (Wasser: 591, 762;

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<sup>9</sup> Fox had also experienced his own encounter with an explosive in 2021, when he found a live grenade in a suspect's backpack (Fox: 806-07).

<sup>10</sup> At some point, Fox also removed a red notebook from the backpack (Fox: 888; PX 6C: 10:00:42). No officer opened or read that notebook at the McDonald's (Wasser: 621; Fox: 925).

Burns: 1048; PX 6E1 & 6F1: 10:00:47-10:01:09). When Officer Fox saw the clip, he exclaimed that defendant was indeed the New York City shooter (PX 6E1 & 6F1: 10:01:09-10:01:14). Corporal Trent asked, “Have you cleared it all? Like, let’s just go back to the station” (PX 6E1 & 6F1: 10:01:31-10:01:34). Wasser responded, “We’re just making sure it’s not a bomb or anything in here before we put it in the car” (Wasser: 592; PX 6E1 & 6F1: 10:01:34-10:01:36).

By that time, Lieutenant Hanelly had grown concerned about the sheer number of items in defendant’s backpack and the possibility of cross-contamination of DNA evidence, and he said that they should wait until they got to the stationhouse to go through all of the backpack’s contents (Hanelly: 976-77; Burns: 1048). Officers Wasser and Fox then repacked the backpack, feeling it as they repacked it in order to ensure that it did not contain any bombs (Wasser: 592, 594, 697-702; PX 6E1 & 6F1: 10:01:49-10:02:49). By the time that they finished repacking, Wasser and Fox were confident that the backpack did not contain any explosives (Wasser: 592; Fox: 877-78, 891, 900). A few remaining items – including defendant’s laptop, the bread, the sandwich, and the Mark Rosario driver’s license – were placed in a separate McDonald’s bag for Fox to take back to the precinct (Wasser: 702; Fox: 824; PX 6F1: 10:03:31-10:04:06).

As Officers Wasser and Fox prepared to leave the McDonald’s, Officer McCoy asked them whether they had happened to see a particular item in defendant’s backpack (PX 6E1 & 6F1: 10:03:25-10:03:27). Wasser and Fox responded that they had not completely searched the backpack because, as Wasser put it, they “just wanted to make

sure there's no bombs" (PX 6E1 & 6F1: 10:03:27-10:03:30). Corporal Trent then opined, for the first time, "at this point, you're probably gonna need to do a search warrant for it" (Wasser: 595-96; Fox: 823; PX 6E1 & 6F1: 10:03:31-10:03:33). Sergeant Burns – who was Trent's direct supervisor – and Officer Fox both disagreed, explaining that they had the right to do a warrantless search incident to an arrest "for a crime he committed here" (Wasser: 595-596; Fox: 816, 924-25; Burns: 1050-51; PX 6E1 & 6F1: 10:03:36-10:03:49). Trent did not drop the subject, and Corporal Brian Miller agreed that a search warrant made sense "just for the severity of it," but Burns refused to engage further because he was "not going to stand there and argue with Corporal Trent inside McDonald's over . . . his opinion that we needed a search warrant because clearly we did not" (Wasser: 596-97; Burns: 1113; PX 6E1 & 6F1: 10:03:50-10:04:04).<sup>11</sup>

Officer Wasser carried the backpack to her patrol car to transport it to the stationhouse. As she walked to her car, she confirmed that Officer Fox – who was carrying the McDonald's bag to his car to transport it to the stationhouse – would meet her at the station (Wasser: 600-01, 710-11; Fox: 824, 828-29, 906; PX 6E1 & 6F1: 10:04:05-10:04:40).

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<sup>11</sup> At no point did Lieutenant Hanelly – the ranking officer at the scene – suggest obtaining a search warrant because he, like Burns and Fox, understood that any search of the backpack would fall within Pennsylvania's warrant exception for searches incident to arrest (Hanelly: 972-73, 985, 1023-24).

While Officers Wasser and Fox were driving in their separate cars to the stationhouse, Lieutenant Hanelly called Fox and told him to return to McDonald's (Wasser: 601-02; Fox: 829, 907; Hanelly: 994). Because Fox still had the McDonald's bag containing some of defendant's possessions, he told Wasser to pull over so that he could hand off that bag before going back to McDonald's (Wasser: 600-03; Fox: 829, 907-08). They both pulled over; Wasser put the McDonald's bag in her car; and she headed to the stationhouse while Fox returned to McDonald's (Wasser: 601-02, 714; Fox: 829-30, 911).

**P. Lieutenant Hanelly again tries to contact NYPD investigators but is again unable to do so.**

All this time, Lieutenant Hanelly was still waiting for a call back from NYPD investigators. At 10:01 a.m., he called New York City 911 again to report that APD had taken the suspect – who did indeed appear to be the New York City shooter – into custody on Pennsylvania charges (Hanelly: 980; PX 13B [911 recording]). Hanelly gave the 911 operator defendant's true name and said that he matched the photos in the press (PX 13B). The 911 operator said that she would contact her supervisor (PX 13B).

**Q. At the stationhouse, officers inventory the items on defendant's person and in his backpack.**

At 10:11 a.m., Officers Detwiler and Frye delivered defendant to the APD stationhouse, where APD Sergeant ERIC HEUSTON and APD Officer Austin Homan assisted them in processing defendant's arrest in accordance with APD policies (Heuston: 1163, 1169, 1174; PX 6A6, 6B2, 6H1: 10:11:35-10:11:38).



## **1. APD Inventory Policies**

Just as APD General Order 1.2.2(C)(1)(a)(1) provided for searches of “[t]he clothing worn by the person and any bags or packages they may be in possession of” at the site of an arrest, it provided for such searches “as custody is passed from officer to officer or facility to facility” (PX 10A). APD General Order 3.1.9(A)(1) further required an “inventory search” of a detainee “upon arrival at APD Headquarters, and prior to entry within the cell block area” (PX 10B; *see also* Featherstone: 1275-76).

APD General Order 3.1.10(A), in turn, explained how to properly document and store a detainee’s property (PX 10B). It required APD officers to generate an “itemized inventory of all items taken from the detainee” (PX 10B). A detainee’s personal property would generally “be logged on the detainee property receipt as an itemized inventory” and then “returned to the detainee on release or transferred with the detainee to another secured facility” (PX 10B; *see also* Detwiler: 273; Frye: 424-25; Wasser: 605; Featherstone: 1278). But any “[c]ontraband, evidence, and/or illegal weapons” would be “placed into evidence as required by agency policy,” would “not [be] returned to the detainee,” and would be “noted on the detainee property form as well as documented in the official incident report” (PX 10B).

APD officers would implement those policies by escorting arrestees to the APD stationhouse’s intake area to process the arrest (Frye: 408-10; Wasser 603-04; Burns: 1051; Heuston: 1170). The arrestee would then be shackled next to the processing table,

and – when possible<sup>12</sup> – his property would be inventoried in his presence so as to minimize claims of theft or damage (Frye: 411-12; Wasser: 606; Burns: 1052-53; Heuston: 1172; Featherstone: 1269, 1272-73, 1277, 1283-84). Every pocket of every piece of clothing would be searched (Wasser: 605; Heuston: 1171; Burns: 1053; Featherstone: 1282-1283). Every bag would likewise be searched (Wasser: 604-605, 757, 761; Burns: 1052-53; Featherstone: 1283). Items such as jewelry, extra layers of clothing, shoelaces, and bags would be removed and stored appropriately (Detwiler: 273; Frye: 411-12; Burns: 1052-53; Heuston: 1171).

During the intake process, APD officers would need to determine which items constituted personal property that would be returned to the arrestee and which items constituted contraband or evidence (Frye: 523; Wasser: 625-26, 757; Burns: 1054, 1095; Featherstone: 1270-71, 1281). For the personal property to be returned to the arrestee, APD officers would complete a receipt-and-inventory form that also contained the arrestee's pedigree information (Detwiler: 270; Wasser: 604, 607; Burns: 1051-52, 1054; Heuston: 1175; Featherstone: 1270, 1277). Personal property would then be stored in a numbered locker (Wasser: 605-06). Items designated contraband or evidence would be

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<sup>12</sup> APD officers were authorized to depart from this guidance about the location of the inventory search under two circumstances: (1) when a search revealed a weapon, they would move outside of the intake room, away from the detainee; and (2) when the arrestee's property was too voluminous to be processed in a timely manner in the intake room (Wasser: 612-613; Burns: 1109-10, 1117; Heuston: 1173-74, 1178, 1181-82, 1261; Featherstone: 1273-74, 1322-23).

documented in an incident report, photographed, and placed in labeled envelopes (Wasser: 606-07, 757; Burns: 1055, 1057; Heuston: 1176, 1255-56; Featherstone: 1271-72; PX 10B, 3.1.10). Those envelopes would then be brought to a supervisor, who would verify each envelope's contents before sealing it (Featherstone: 1271, 1280). That evidence would be logged in APD's computer system, assigned a tracking number, and stored in an evidence locker (Featherstone: 1271-72).

APD would thus conduct an inventory search for every arrestee who was brought to the stationhouse (Heuston: 1239). And every piece of that arrestee's property, whether deemed personal property or evidence, would be documented (Wasser: 606-607; Heuston: 1175; Featherstone: 1281). In addition, cameras – both overhead cameras in the intake area and officers' BWCs – would record the searches of the person and his property (Heuston: 1172). Given the logistical issues involved in inventorying large numbers of items, APD officers were not required to write out inventory lists simultaneously with their inventory searches; they could instead leave the documentation for a later time (Burns: 1112; Heuston: 1209, 1255; Featherstone: 1282).

## **2. The Inventory Search of Defendant's Person**

When Officers Detwiler and Frye brought defendant to the stationhouse, Detwiler immediately placed the brown beanie – which itself contained various items recovered from defendant's person at the McDonald's – on the intake desk while Frye instructed defendant to remove his shoes (PX 6A3 & 6B2: 10:11:38-10:11:41). Frye then shackled defendant's feet and emptied the contents of the brown beanie onto the

intake desk (PX 6B2: 10:11:48-10:12:10). As Officer Homan gathered defendant's pedigree information, Frye collected defendant's excess layers of clothing along with his jewelry – which included a necklace that had a USB drive hanging from it – and placed those items on the intake desk (Frye: 418, 427; Heuston: 1188-90; PX 6B2: 10:12:10-10:20:10). While going through the pockets of defendant's pants, Frye found two pieces of paper – a bus ticket to Pittsburgh in the name of Sam Dawson, and a SEPTA ticket (Frye: 429-30; Heuston: 1186-87; PX 6B3: 10:24:27-10:24:33). In sifting through the items found on defendant's person, Frye deemed items like the USB drive to be evidence and items like articles of clothing to be personal property that would travel with defendant (Frye: 427, 435, 523-24). After Frye confirmed that Homan had separated out all of the items of evidentiary value, the two officers placed the items that they considered personal property in a large Lowe's bag (Frye: 517-19; PX 6B4: 10:32:05-10:33:00). All of the items – regardless of whether they appeared to hold evidentiary value – were subsequently handed over to Officer Featherstone (Frye: 524).

### **3. The Inventory Search of Defendant's Backpack**

Meanwhile, at about 10:15 a.m., Officer Wasser arrived at the stationhouse carrying both defendant's backpack and the McDonald's bag (Wasser: 602-03, 712, 714, 717; PX 6B2 & 6F2: 10:15:37-10:15:47). She placed the backpack on a chair to begin inventorying it in the intake room about four feet from defendant, who was ankle-cuffed to the floor with his hands free (Wasser: 609-11, 635; PX 6B2 & 6F2: 10:16:06-10:16:09). Wasser began looking through the backpack and quickly found a handgun in

a side compartment that she had not opened at the McDonald's (Wasser: 611, 722; PX 6F2: 10:16:09-10:16:19). She told Deputy Chief Derek Swope, who was also in the intake area, "There's a weapon" (Wasser: 611; PX 6B2 & 6F2: 10:16:24-10:16:26). Swope then signaled to Wasser to take the backpack containing the weapon to another room, away from defendant – APD's standard procedure when officers find weapons during inventory searches (Wasser: 614-15; Heuston: 1182; PX 6F2, 10:16:28-10:16:35).

Officer Wasser took the backpack and McDonald's bag to an adjoining hallway – which was separated from the intake room by a locked door – as Deputy Swope explained, "I just don't want to clear it with him still there" (Wasser: 612-13; PX 6F2, 10:16:38-10:16:50). Once in the hallway, Wasser explained how she had checked the backpack for bombs at the McDonald's, and Swope told her to clear the handgun (PX 6F2: 10:16:47-10:17:09). Wasser did so and found that the handgun was loaded (Wasser: 614; PX 6F2: 10:17:09-10:17:24). She and Swope then placed the gun in an evidence box specifically designed to store guns (Wasser: 615; PX 6F2: 10:18:05-10:18:17).

Officer Wasser then undertook to separate the remaining property in defendant's backpack into either personal property or evidence, but she had difficulty doing so because her knowledge of the investigation into the New York City shooting was limited to what NYPD had shared with the public (Wasser: 607-08, 621-22, 760). She handed items of apparent evidentiary value – including the loaded magazine she had previously found at the McDonald's and the silencer, which she had not previously found at the McDonald's – to Deputy Swope, who placed them in manila evidence

envelopes (Wasser: 616-18, 764; PX 6F2: 10:18:32-10:22:20). And she placed items that did not appear to be of evidentiary value – including a disk, toiletries, and articles of clothing – back in the backpack (Wasser: 618-23, 625, 736, 741, 761; PX 6F2: 10:22:33-10:22:50, 10:23:15-10:25:41).

When Officer Wasser encountered a red notebook, she opened it, examined some of its pages, and observed, “It’s like a journal” (Wasser: 620-21; PX 6F2: 10:22:50-10:23:10). When Deputy Swope asked, “Bag it?” Wasser answered, “I would” (Wasser: 735; PX 6F2: 10:23:10-10:23:13). At one point, Swope also urged Wasser to “make sure there’s no explosives in there” (PX 6F2: 10:23:20-10:23:23).

By 10:26 a.m., there were more than half-a-dozen manila evidence envelopes lined up against the hallway wall alongside the evidence box containing the handgun (Wasser: 624; PX 6F2: 10:26:04). All of those items were eventually transferred – along with the personal property that was still in defendant’s backpack – to Officer Featherstone, APD’s evidence custodian (Wasser: 624, 626, 740-42, 758-59; Featherstone: 1286).

At 10:25 a.m. – just as Officer Wasser was finishing looking through all of the items in the backpack in the hallway – Lieutenant Hanelly finally received a call back from an NYPD officer (Hanelly: 981). Hanelly shared some of what he knew about defendant with the caller, who transferred him to a detective (Hanelly: 981). After Hanelly repeated that information to the detective, he was transferred to the Office of the Chief of Detectives (Hanelly: 981). At about 10:40 a.m., Lieutenant Leonardi – the

supervisor of NYPD's Manhattan South Homicide Squad – spoke to Hanelly, said that he was on his way to Altoona, asked that nobody speak to defendant, and asked that all of defendant's property be held (Leonardi: 1407).

Meanwhile, beginning at 10:30 or 10:40 a.m., Sergeant Heuston – while still in the intake area – began photographing the items of clothing recovered from defendant (Heuston: 1195-99, 1206, 1232-33; PX 8B1-8B14 [photos of clothing]). APD soon decided to move the inventory process to Officer Featherstone's office, which was a locked and secured room (Heuston: 1199, 1206; Featherstone: 1287). There, Heuston continued photographing items that had been recovered from defendant, regardless of whether they held any apparent evidentiary value (Heuston: 1188, 1196-1205).<sup>13</sup> Those items included: a loose sheet of paper; the zip pouch and its contents – a USB drive, United States currency totaling more than \$7,000, and some foreign currency; a loose notecard containing a cryptocurrency seed phrase; a Visa gift card; defendant's authentic Maryland driver's license; defendant's forged New Jersey driver's license; another USB drive; defendant's wallet, which contained additional United States currency; the bus ticket and SEPTA ticket; items of clothing and bags found inside defendant's backpack; the backpack itself; defendant's passport; the handgun; the silencer; and the magazine (Heuston: 1198-1205; PX 8B15-B38). At some point,

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<sup>13</sup> As Officer Featherstone explained at the hearing, he immediately decided that everything should be treated as evidence because he did not know what might or might not be relevant to the NYPD's investigation (Featherstone: 1289).

Heuston began photographing loose pieces of paper recovered from defendant, as well as writings from the red notebook (Heuston: 1234-35).

At about 11:30 a.m., Officer Featherstone's office had gotten so full of evidence envelopes that he and his colleagues decided to move all of defendant's property up to the stationhouse's roll-call room, where they could document it in detail in more orderly fashion (Burns: 1097, 1116-17; Featherstone: 1293-94, 1340, 1347). In the roll-call room, Sergeant Burns photographed every item recovered from defendant (Burns: 1056-70; PX 8A135-8A306). He photographed every piece of paper in defendant's possession, including loose pages, envelopes, every page of the red notebook, and every page of defendant's passport (Burns: 1056-57, 1062-65; Featherstone: 1307; PX 8A135-8A278 [144 photos of papers]). Where a piece of paper appeared to have been ripped out of the notebook, Burns photographed that area in order to protect against any claim that APD had damaged or tampered with evidence (Burns: 1063-64; Featherstone: 1307-08; PX 8A259-8A260). Burns photographed each piece of paper, regardless of whether it contained any writing (Burns: 1056-57; PX 8A161, 8A166). When a piece of paper was found in an envelope, Burns photographed both the piece of paper and envelope – even if the envelope had no writing on it (Burns: 1058-59; *see, e.g.*, PX 8A152, 8A161-8A162). The other items photographed by Burns included the gun and silencer, defendant's wallet and its contents, the zip pouch and its contents, various pieces of computer equipment, a CVS receipt, defendant's watch, his mask, his flashlight, a pen,



some loose change, a camera, a cellphone, a laptop, batteries, and toiletries (Burns: 1068-70; PX 8A279-8A306).

Whenever Sergeant Heuston or Sergeant Burns photographed an item, Officer Featherstone packaged that item in an envelope, labeled that envelope, and assigned a number to that envelope (Featherstone: 1288). Throughout the process, Featherstone kept a written tally of each item collected – a tally that Featherstone and Heuston both used to generate their incident reports (Heuston: 1206-09; Featherstone: 1289, 1299-1300, 1350; PX 9A [handwritten list]; PX 9D [Featherstone incident report]; PX 9E [Heuston incident report included in search warrant paperwork]).<sup>14</sup> At about 12:15 p.m. – after defendant’s property had been moved from Featherstone’s office to the roll-call room, but before Burns had finished photographing the items in the roll-call room – Heuston emailed some of the photographs he had taken to NYPD investigators (Heuston: 1234-35).

#### **4. The Search Warrant for Defendant’s Possessions**

Meanwhile, over the course of that afternoon, Sergeant Heuston prepared an application for a search warrant for all of the items recovered from defendant (Heuston: 1212-13). As Heuston understood it, APD already had the authority to recover those

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<sup>14</sup> APD officers completed other forms – including the city docket and the receipt-and-inventory sheet – that had space for property recovered (PX 9B [city docket]; PX 17 [receipt and inventory]). But the list on the city docket was not meant to be comprehensive; and on the receipt-and-inventory form, the space for defendant’s personal property was left blank because APD was treating all of the property recovered from him as evidence (Heuston: 1211-12; Featherstone: 1379; PX 17).

items from defendant through a search incident to defendant's arrest on Pennsylvania charges, but it did not have the authority to transfer those items to NYPD for its investigation into the New York City shooting (Heuston: 1213). The search warrant's purpose was to authorize such a transfer (Heuston: 1213).

In an affidavit of probable cause, Sergeant Heuston relayed information that he had received from NYPD Detective Oscar Diaz about the shooting, about the markings on the shell casings, about the victim's position as a health-insurance CEO, about the shooter's flight on a bicycle, about how NYPD had traced the shooter's movements in surveillance footage, and about how stills from that footage had been shared with the public (Heuston: 1214-15; PX 12A: 2-3). Heuston then explained how Officer Detwiler had recognized defendant as the person depicted in those surveillance stills, had asked for his identification, and had received a fake New Jersey driver's license from him (PX 12A, pp. 2-3). The affidavit went on to list the items APD had already found during its inventory of the items in defendant's backpack and on his person (PX 12A, pp. 3-4).

At 5:14 p.m., the Blair County District Attorney's Office approved the search-warrant application (Heuston: 1213-14; PX 12A, p. 1). At 6:00 p.m., Judge David Consiglio of the Pennsylvania Court of Common Pleas signed the search warrant (PX 12A, p. 1). Later that night, Sergeant Heuston filed a return on the warrant, listing the items seized pursuant to it (Heuston: 1216-17; PX 9C [warrant return]).

## **5. The Transfer of the Property to NYPD**

Meanwhile, as Sergeant Burns and Officer Featherstone were nearing the end of their inventory, NYPD officers – including Lieutenant Leonardi – arrived at the APD stationhouse (Featherstone: 1295-96, 1324-25). Once APD was prepared to transfer custody of all of the items it had inventoried, Featherstone showed Leonardi each envelope, read aloud his description of the envelope's contents, and had Leonardi confirm that he agreed with the description (Featherstone: 1297). Featherstone and Leonardi then signed each envelope to document the transfer of custody (Featherstone: 1297-98). Throughout the hours-long process of inventorying the items recovered from defendant, Officer Featherstone followed APD inventory procedures in every way but one: He did not log the evidence recovered from defendant into APD's computer system because he knew that those items were destined to be transferred to NYPD, and the computer system was only for items that APD was going to retain (Featherstone: 1289, 1291, 1295, 1372-76, 1387).

### **R. During and after his arraignment in Pennsylvania, defendant makes various statements.**

In the early evening of December 9, 2024, Officers Fox and Frye drove defendant to Blair County Courthouse for his arraignment (Fox: 830). During that arraignment, the Blair County District Attorney stated that defendant had \$7,000 on him at the time of his arrest, and defendant protested that he had been carrying less than \$100 (Heuston: 1218-1219, 1227-28). After the arraignment, Fox was escorting

defendant from the courtroom when, without any prompting, defendant “looked back at all the reporters and stated ‘all these people here for a mass murderer, wild’” (Fox: 831-32). As they continued walking, defendant stumbled because of the shackles on his legs. Fox apologized, but defendant replied, “it’s okay, I’m going to have to get used to it” (Fox: 832).

**S. While housed in a Pennsylvania correctional facility, defendant makes various unprompted statements to corrections officers.**

Defendant was then taken to Pennsylvania’s SCI Huntingdon Correctional Institution – a nearby state prison where he could receive greater security monitoring than at a local jail (Corrections Officer TOMAS RIVERS: 81; Corrections Officer MATTHEW HENRY: 134). There, defendant was placed in administrative custody in “Rear D” – a small group of cells reserved for inmates who are a risk to themselves or who would be particularly at risk if housed with the prison’s general population (Rivers: 78-81; Henry: 135). In Rear D, defendant was constantly monitored by corrections officers, who had to fill out forms memorializing his movements seven times an hour (Rivers: 81-82; Henry: 139-40).

On December 10, 2024, defendant was observed by Corrections Officer MATTHEW HENRY, who had seen some coverage of the New York City shooting but had no interest in the case (Henry: 134, 136, 164). While monitored by Henry, defendant volunteered that he was a software engineer, that he had been arrested in a McDonald’s, that he had been carrying a backpack, that the backpack contained a 3D-

printed pistol and a magazine along with a small amount of foreign currency, and that people were accusing him of being a foreign agent (Henry: 136-38, 147, 156-57). None of those statements were prompted by Henry, who in fact said nothing to defendant because he had no interest in conversing with defendant (Henry: 136-38, 147-50). While documenting defendant's movements that day, Henry said that, at 8:37, 8:44, 8:53, 9:02, and 9:11, defendant was "standing at door talking" (Henry: 141-42).<sup>15</sup>

On December 16, 2024, Corrections Officer TOMAS RIVERS – who knew that defendant had been arrested at a McDonald's in Altoona and that defendant was alleged to have shot a health-insurance CEO – monitored defendant in Rear D (Rivers: 73, 77-78, 80). During Rivers's shift, he and defendant chatted about travel, and defendant described things he had seen in Vietnam and Thailand (Rivers: 87). At one point, defendant observed that people in "third world countries," despite experiencing "a level of suffering" and living in poverty, seemed to be happier than people in other places (Rivers: 87, 118-19). At another point, defendant and Rivers chatted about private healthcare and public healthcare, though defendant did not express any opinions on the subject (Rivers: 89).

Near the end of Corrections Officer Rivers's shift, defendant asked how the media was portraying him. Rivers answered that the mainstream media seemed to be

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<sup>15</sup> Henry observed defendant again on December 11, 12, and 13, but he did not recall hearing defendant say anything on those days (Henry: 138-39).

focused on the crime, whereas social media seemed to be more focused on the wrongdoings of the healthcare industry (Rivers: 89-92). At one point, defendant said that he had heard that he was being compared to Ted Kaczynski because somebody had seen a review he had written of one of Kaczynski's books on Goodreads or Google (Rivers: 90-91). At another point, defendant said that he "wanted to make a statement to the public" (Rivers: 91). Defendant did not elaborate, and Rivers did not ask any follow-up questions because, "I'm not investigating the case. I don't care" (Rivers: 91, 100-101, 128).

The next day, Corrections Officer Rivers again monitored defendant, who talked about his favorite authors and recommended the book "The Doors of Perception" by Aldous Huxley (Rivers: 94-95). At some point that day, defendant brought up the subject of the standard of health for United States citizens as compared to the standard of health for European citizens (Rivers: 96). Defendant and Rivers had a casual conversation about that subject (Rivers: 96).

At no point did Corrections Officers Henry or Rivers enter defendant's cell (Rivers: 92-94, 96; Henry: 136). Nor did either of them report their conversations with defendant to anybody until January 2, 2025, when they were interviewed by the Manhattan District Attorney's Office (Rivers: 100-01; Henry: 150-55).

## **ARGUMENT**

Preliminarily, the People note that, in the suppression context, this Court serves two roles in that it must make factual findings and then reach conclusions of law. On

the subject of factual findings, the People submit that every witness testified credibly at the hearing. The witnesses' testimony was corroborated not only by testimony from other witnesses, but also by BWC footage that captured much of the conduct in question. Defendant nonetheless insists that certain witnesses simply lied, both while being recorded on BWC footage and while testifying at the hearing (*see, e.g.*, Defendant's Memorandum of Law ["DMOL"]: 54, 64). The People dispute those claims and will respond to them below, in the portions of this memorandum that discuss the searches or statements that they relate to.

## POINT I

### **THE EVIDENCE RECOVERED FROM DEFENDANT'S BACKPACK AT THE MCDONALD'S SHOULD NOT BE SUPPRESSED.**

Defendant initially argues that the evidence recovered from his backpack at the McDonald's should be suppressed (*see* DMOL: III.A.2), but he does not spell out which evidence was recovered at that stage. The items recovered from the backpack at the McDonald's included – among other things – a passport that the officers inspected, a wallet, and a fully loaded gun magazine (Wasser: 588-591; Fox: 810-811, 820-822, 832-833; PX 6E1: 9:59:25-10:01:09; PX 6F1: 9:59:15-10:00:37; PX 8A-295).<sup>16</sup> None of those items should be suppressed.

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<sup>16</sup> The search at the McDonald's does not implicate the pistol or the silencer, both of which were first found at the APD stationhouse. Nor does the search at the McDonald's implicate the red notebook, which officers handled as they were feeling  
(Continued...)

As detailed below, this Court should consider Pennsylvania search-and-seizure law in assessing the reasonableness of the APD officers' conduct. And under Pennsylvania search-and-seizure law, those officers properly conducted a search incident to arrest of defendant's backpack at the McDonald's. Furthermore, even under New York search-and-seizure law, the Pennsylvania officers' conduct was justified by exigent circumstances that were thoroughly established at the hearing.

**A. This Court should use Pennsylvania law to assess the reasonableness of Pennsylvania officers' search of defendant's backpack at a McDonald's in Pennsylvania.**

Defendant contends that the actions of Pennsylvania officers, who were acting under color of Pennsylvania law when they arrested defendant in Pennsylvania for a Pennsylvania crime, must now be judged under the search-and-seizure law of New York (DMOL: III.A.1.i). But it would not deter unreasonable searches and seizures to require Pennsylvania police officers to understand and apply a foreign jurisdiction's case-law when conducting a search in Pennsylvania of a defendant arrested in Pennsylvania for committing a Pennsylvania crime. For that reason, this Court should reject the defense's request and instead hold that, because these Pennsylvania officers followed Pennsylvania search-and-seizure law reasonably and in good faith while carrying out an arrest in Pennsylvania for violations of Pennsylvania law, their search of the backpack

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around the backpack for a bomb, but which officers never opened at the McDonald's. *See People v. Lewis*, 195 A.D.3d 427, 421 (1st Dep't 2021) (explaining that a search of an envelope occurred when an officer opened the envelope and looked inside it).



at the McDonald's in Pennsylvania was reasonable and therefore provides no basis for suppression.

The Appellate Division, First Department, has embraced such logic. In *People v. Smith*, 283 A.D.2d 189, 190 (1st Dep't 2001), the defendant confessed to Jamaican officials that he had killed someone in New York, but the Jamaican officials had not delivered the *Miranda* warnings required under New York law. In the ensuing New York prosecution, Smith moved to suppress his confession on *Miranda* grounds. See *Smith v. Artus*, 2005 WL 1661104, at \*1-\*4 (S.D.N.Y. 2005) (federal decision denying Smith's application for habeas relief). The First Department rejected that argument on the ground that "[t]here was no evidence that the Jamaican authorities acted as agents of New York police." 283 A.D.2d at 190; see also *People v. Webster*, 248 A.D.2d 738, 738 (2d Dep't 1998) (finding that "foreign law enforcement officials were not bound by the mandates of *Miranda*"); *People v. Vega*, 225 A.D.2d 890, 892 (3d Dep't 1996) (finding "no compelling reason" to suppress evidence seized in another state in accordance with that state's search-and-seizure law).

In reaching that conclusion, the *Smith* court approvingly cited *United States v. Maturo*, 982 F.2d 57, 61 (2d Cir. 1992). *Smith*, 283 A.D.2d at 190. In *Maturo*, the United States Court of Appeals for the Second Circuit rejected the argument that, in a prosecution in a United States federal court, the exclusionary rule applied to evidence collected by foreign authorities in a way that violated United States federal law. Instead, the Second Circuit held that evidence gathered outside of the United States by foreign

officials was presumptively admissible. 982 F.2d at 60-61.<sup>17</sup> The Second Circuit has since reaffirmed that position, explaining that enforcing the exclusionary rule in that context would serve no deterrent purpose because “the actions of an American court are unlikely to influence the conduct of foreign police.” *U.S. v. Lee*, 723 F. 134, 139 (2d Cir. 2013); *see also* Wayne R. LaFare et al., *Criminal Procedure* § 3.1 (4th ed. Nov. 2025) (finding “no reason why the foreign official in such circumstances should be expected to discover and apply a rather complicated body of law from another country”).

Although *Smith* and the Second Circuit cases dealt with evidence collected by foreign officials in foreign countries, most states apply a similar rationale in the domestic analogue: the collection of evidence in other states by other states’ officers.

As the Connecticut Supreme Court has observed:

The majority of courts that have considered the issue have concluded that “it does not offend the constitutional principles of a forum jurisdiction to allow the transfer of criminal evidence from the officers of another jurisdiction to those of the forum when the evidence has been obtained

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<sup>17</sup> In order to overcome that presumption, the record must establish conduct by foreign officials so extreme as to shock the judicial conscience, or, alternatively, cooperation with American officials that either rendered the foreign officials agents (or virtual agents) of U.S. officials or that was “designed to evade constitutional requirements.” *Maturo*, 982 F.2d at 60-61; *see also, e.g., U.S. v. Aleem*, 641 F. App’x 96, 96-97 (2d Cir. 2016) (applying same standard and rejecting Fourth Amendment challenge to search conducted by Canadian authorities acting on tip from U.S. Border Patrol); *U.S. v. Getto*, 729 F.3d 221 (2d Cir. 2013) (applying same standard and rejecting Fourth Amendment challenge to searches by Israeli authorities who had received formal request for assistance from FBI); *cf. People v. Capolongo*, 85 N.Y.2d 151, 163 (1995) (approvingly citing this standard while suppressing the evidence in question due to lack of notice under CPL article 700).

lawfully by the former without any assistance by the latter,” even when the search would have been illegal in the forum jurisdiction.

*State v. Boyd*, 295 Conn. 707, 727 & n. 12 (2010) (quoting *State v. Mollica*, 114 N.J. 329, 353 [1989]; collecting cases)<sup>18</sup>; see also, e.g., *State v. Havatone*, 443 P.3d 970, 976 (Ct. App. Ariz. 2019) (admitting evidence that was lawfully gathered in Nevada even though the method of collection would have violated Arizona law if conducted in Arizona).

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<sup>18</sup> When surveying states’ positions on this issue, the Connecticut Supreme Court seemed to believe that New York appeared to be in the minority because of *People v. Griminger*, 71 N.Y.2d 635 (1988). See 295 Conn. at 727 n.12. But *Griminger* did not involve the extraterritorial application of New York law. Instead, *Griminger* held that federal law enforcement agents who were gathering evidence in New York that would be used to support a state-court prosecution could not circumvent New York’s heightened search-warrant standards by going to a federal magistrate in New York. As one court later observed, the rule of *Griminger* “makes sense” because, were it otherwise, “New York police officers could circumvent New York search-and-seizure law by bringing warrants of questionable validity under *Aguilar–Spinelli* to a federal magistrate.” *Lopez v. Greiner*, 323 F. Supp. 2d 456, 478-79 (S.D.N.Y. 2004). The *Griminger* ruling thus appears to have been animated by concerns about forum-shopping – that New York-based law enforcement would evade New York State’s heightened search-warrant protections by seeking search warrants from federal magistrates. And indeed, the authorities cited in *Griminger* bear out that understanding. See *Griminger*, 71 N.Y.2d at 641 (citing *Elkins v. U.S.*, 364 U.S. 206 [1960] [ending “silver platter doctrine,” which permitted the use in federal criminal trials of evidence gathered during unreasonable searches and seizures by state officials, who then turned that evidence over to federal officials]); *Griminger*, 71 N.Y.2d at 641 (citing *People v. Ridgeway*, 64 N.Y.2d 952, 954 [1985] [finding no violation of New York State’s right to counsel and noting the absence of any indication “that the Federal arrest was intended or employed by State Police as a device for circumventing defendant’s State right to counsel”]). Any concerns about forum-shopping are, of course, nonexistent in this case because it was defendant who chose to travel to Pennsylvania. APD officers had no idea that he would appear in their jurisdiction on December 9, 2024, much less an opportunity to familiarize themselves with New York search-and-seizure law and then strategize over whether to circumvent it by following Pennsylvania search-and-seizure law instead. Furthermore, APD arrested defendant for violations of Pennsylvania law, rather than New York law.

The reasoning underlying that majority position is straightforward. “The exclusionary rule’s primary function is deterrence of future unlawful police activity; the rule has never been viewed as a personal remedial right of a party aggrieved by the misconduct.” *People v. Drain*, 73 N.Y.2d 107, 110 (1989). In general, when officers of one state comply with the search-and-seizure law of that state, they reasonably understand themselves to be acting lawfully. They cannot be expected to know the different search-and-seizure laws of 49 other states, much less anticipate which state’s search-and-seizure law will govern an interaction with a particular defendant. For those reasons, using the exclusionary rule to enforce one state’s search-and-seizure law against officers from another state would be pointless because it would not – and, indeed, ought not – alter the future behavior of the second state’s officers. *See Boyd*, 295 Conn. at 729 (embracing the majority view that “the application of the exclusionary rule to evidence that was obtained legally by officers of another jurisdiction will not deter unlawful police conduct either in this state or in the other jurisdictions”).

The United States Supreme Court has likewise recognized the impracticality of using the exclusionary rule to deter police conduct that the police reasonably understood to be lawful. In *Davis v. United States*, 564 U.S. 229 (2011), the Court held that it is improper to suppress evidence for a Fourth Amendment violation by police officers who “conduct[ed] a search in compliance with binding precedent that is later overruled.” *Id.* at 232. When the police act “in strict compliance with binding precedent,” the Court explained, the sanction of exclusion is unwarranted. *Id.* As the

Court elaborated, “all that exclusion would deter” in such circumstances “is conscientious police work” because, “when binding appellate precedent specifically *authorizes* a particular police practice, well-trained officers will and should use that tool to fulfill their crime-detection and public-safety responsibilities.” *Id.* at 241 (emphasis in original).

That analysis comports with New York Court of Appeals precedent holding, in an analogous context, that a seizure can be justified if a New York officer reasonably conducts the seizure in accordance with New York law, even when the conduct is in fact regulated by the laws of another state. In *People v. Estrella*, 48 A.D.3d 1283 (4th Dep’t 2008), New York officers stopped a Georgia-registered car because its windows appeared to violate New York’s window-tint restrictions. *Id.* at 1285. But because the car was registered in Georgia and driven by a Georgia resident, its window tints were subject only to Georgia law, which did not prohibit them. *Id.* The Appellate Division nonetheless upheld the car stop, explaining that it would be “unreasonable to require” New York police officers to “be familiar with the equipment requirement laws of every state . . . in order to effectuate a proper stop for a violation of New York State law.” *Id.* The case then proceeded to the Court of Appeals, which affirmed on the ground that New York officers are “not chargeable with knowledge” of other states’ laws. *People v. Estrella*, 10 N.Y.3d 945 (2008). By the same token, it was reasonable for Pennsylvania officers executing a search and seizure in Pennsylvania on an arrest for violations of Pennsylvania law to follow Pennsylvania search-and-seizure law – even if it were the

case that, in fact, New York law should apply. *See also People v. Guthrie*, 25 N.Y.3d 130, 133-36 (2015) (discussing *Estrella* and holding that, when an officer stopped a car for running a “stop” sign that was not properly registered, the officer’s good-faith and objectively reasonable understanding that the “stop” sign was valid – though mistaken – provided a sufficient basis for the traffic stop, thereby precluding suppression).

Collectively, these cases establish the commonsense conclusion that officers operating in their own jurisdiction are entitled to rely on the search-and-seizure law that routinely applies in that jurisdiction. For that reason, the APD officers who – without having had any reason to expect to find defendant in their city – arrested defendant in Pennsylvania for Pennsylvania crimes were entitled to rely on Pennsylvania search-and-seizure law in carrying out their duties. Their good-faith searches, conducted in accordance with Pennsylvania search-and-seizure law, were objectively reasonable and therefore provide no basis for suppression.

Defendant nonetheless insists that “New York law applies” (DMOL: 38-39), but each of the cases he cites arose in the factually distinct context where a defendant argued that the violation of another state’s search-and-seizure law required suppression in New York. In that context, New York courts have made clear that “New York law applies” in the sense that the violation of another state’s search-and-seizure law will not, by itself, warrant suppression in New York.

That rule was stated plainly in *People v. Price*, 54 N.Y.2d 557 (1981). There, a Los Angeles Police Department detective stationed at a Los Angeles airport used a trained

dog to sniff the luggage of Price, who was bound for Buffalo. The dog's reaction indicated the presence of controlled substances, and New York authorities were alerted. Based in part on the dog sniff, New York police obtained a search warrant and later recovered heroin from the luggage after Price landed in Buffalo. Price sought suppression because the warrantless dog sniff in Los Angeles "violated California law and that the law of the situs is controlling in this case." *Id.* at 564. The Court of Appeals rejected that argument on the ground that, even if California search-and-seizure law imposed greater requirements than federal or New York search-and-seizure law, New York suppression courts should not apply the exclusionary rule to enforce California search-and-seizure law. The question was therefore whether the Los Angeles detective's actions were "proscribed by either Federal or New York law." *Id.* And because there had been no such violation, there was no reason to suppress the evidence. *Id.*; *see also*, e.g., *People v. Sampson*, 73 N.Y.2d 908, 910 (1989).

Like *Price*, the cases defendant cites all involved defendants' claims that violations of other states' search-and-seizure laws required suppression in New York. And in all of the cases, the People prevailed. *See People v. Espinal*, 161 A.D.3d 556, 557 (1st Dep't 2018) (cited at DMOL: 38) (denying suppression while finding it "unnecessary to decide" the defendant's claim that officers violated New Jersey search-and-seizure law); *People v. LeRow*, 70 A.D.3d 66, 75 (4th Dep't 2009) (cited at DMOL: 38) (denying suppression while using New York search-and-seizure law to evaluate the reasonableness of a New York officer's investigative actions in Pennsylvania); *People v.*

*Johnson*, 303 A.D.2d 903, 906 (3d Dep’t 2003) (cited at DMOL: 38-39) (denying suppression while explaining that the asserted violation of Alabama law in arresting the defendant did not require suppression under New York law); *People v. Sebelist*, 206 A.D.2d 901 (4th Dep’t 1994) (cited at DMOL: 39) (rejecting claim that suppression was warranted based on New York officers’ questioning of a suspect in Pennsylvania); *People v. Ostas*, 179 A.D.2d 893, 894-95 (3d Dep’t 1992) (cited at DMOL: 39) (denying suppression based on asserted violation of Indiana search-and-seizure law because, in a New York prosecution, defendant was “not entitled to the protections afforded her by Indiana law”); *People v. Benson*, 88 A.D.2d 229, 231-32 (3d Dep’t 1982) (cited at DMOL: 39) (denying suppression based on New York officers’ asserted violation of Texas law when questioning a suspect in Texas).

Those cases thus refer to New York law controlling in a New York prosecution, but only to say that, in a New York prosecution, New York courts will not trouble themselves with asserted violations of other states’ search-and-seizure law. None of those cases adopt defendant’s position that other states’ police officers should be held to New York’s search-and-seizure law – especially when the other state’s officers are making the arrest in that other state for a violation of that other state’s laws. Indeed, any such position would be contrary to the Court of Appeals’ decisions in *Guthrie* and *Estrella*.

For these reasons, the Court should apply Pennsylvania search-and-seizure standards in determining the reasonableness of the Altoona police officers’ search of



defendant's backpack at the McDonald's as they were arresting him for violations of Pennsylvania law.

**B. Pennsylvania law authorized the Altoona officers' conduct in searching defendant's backpack at the McDonald's.**

The record from the hearing demonstrates that, at every step, APD officers conducted themselves in accordance with Pennsylvania search-and-seizure law. First, Officers Detwiler and Frye acted in accordance with Pennsylvania law when they approached defendant, asked him to lower his mask, and requested his identification. *See Commonwealth v. Ferebee*, 201 A.3d 872 (PA Super. 2018) (a "mere encounter" or "request for information" "need not be supported by any level of suspicion"). Upon seeing defendant's face, Detwiler immediately recognized him as the person wanted for Brian Thompson's murder. That recognition provided the officers with probable cause to arrest defendant. And as it became more and more apparent that defendant had given the officers a fake driver's license, that forged identification provided the officers with an independent basis for arresting him for violating Pennsylvania law.

The officers did not, however, immediately place defendant under arrest. Instead, they discreetly requested assistance, continued engaging with defendant to avoid raising his alarm, and continued investigating defendant's suspected use of a false identification (Detwiler: 203-04, 207-13, 223; PX 6A1: 9:31:38-9:32:07; PX 6A1 & 6B1: 9:33:22-9:33:35, 9:36:03-9:36:10, 9:36:22-9:37:07, 9:38:44-9:38:46, 9:38:54-9:39:06, 9:39:29-9:39:32, 9:40:13-9:40:26). It was not until 9:58 a.m. that defendant was actually formally

placed under arrest (Wasser: 583-84; McCoy: 1141; PX 6C & 6E1: 9:57:57-9:58:14). Just as Officers Detwiler, Frye, and McCoy began searching defendant's person, Officers Wasser and Fox began searching his backpack, which sat on a table a few feet away (Detwiler: 251; Wasser: 583, 586; PX 6C: 9:58:28-9:59:47; PX 6E1: 9:58:18-9:58:35).

Both the search of defendant's person and the search of his backpack were proper searches incident to arrest under Pennsylvania law. In *Commonwealth v. Simonson*, 148 A.3d 792 (PA Super. 2016), a Pennsylvania appellate court explained that Pennsylvania's search-incident-to-arrest doctrine "allows arresting officers . . . to search both the person arrested and the area within his immediate control." *Id.* at 799 (internal quotation marks and brackets omitted); *see also Commonwealth v. Bundridge*, 2015 WL 6957067, at \*5 (PA Super. June 18, 2015). The court noted that the rationale underlying the exception was "to prevent the arrestee from obtaining a weapon or destroying evidence," but it went on to explain that "the search incident to arrest exception applies categorically" so that the exception permits such searches "as a matter of course – and without a case-by-case adjudication of whether a search of a particular arrestee is likely to protect officer safety or evidence." *Simonson*, 148 A.3d at 799 (internal quotation marks, ellipses, and brackets omitted); *see also Commonwealth v. Rickabaugh*, 706 A.2d 826, 836 (PA Super. 1997) (the validity of a search incident to arrest "does not depend upon whether there is any indication that the person arrested possesses weapons or evidence as the fact of a lawful arrest, standing alone, authorizes a search" [internal quotation marks omitted]); *Commonwealth v. Guzman*, 417 Pa. Super. 364, 369 (PA Super. 1992)

(same) (abrogated on other grounds as described in *Commonwealth v. Bell*, 537 Pa. 558 [1994]). Pennsylvania law thus permitted the search of defendant's person and of the area "within his immediate control" as a matter of course, whether or not they were concerned about any case-specific exigency.

Pennsylvania precedent likewise made clear that defendant's backpack was "within [defendant's] immediate control" for search-incident-to-arrest purposes. Indeed, Pennsylvania appellate courts have consistently held that the scope of a search incident to arrest "includes containers and clothing that are in the arrestee's possession." *Commonwealth v. Williams*, 305 A.3d 89, 97 (PA Super. 2023).

In assessing whether an item was in an arrestee's possession at the time of arrest, Pennsylvania courts do not focus solely on the item's status at the moment of arrest. Instead, they have upheld searches that occurred shortly before the moment of arrest "provided the officer had probable cause to arrest prior to the search." *See Commonwealth v. Trengge*, 451 A.2d 701, 710 n.8 (PA Super. 1982). And they have upheld container searches that occurred after a defendant has been taken into custody, reasoning that the arrestee had possession of the container "at the time the police had probable cause" to make the arrest. *Commonwealth v. Dunbar*, 2023 Pa. Super. Unpub. LEXIS 1637, at \*6-\*7 (July 6, 2023). The defendant in *Dunbar* was carrying a duffel bag over his shoulder, but officers took it from him, and it was only after detaining the defendant and reducing the bag to their exclusive control that the officers searched it. *Id.* at \*2-\*3. On appeal, the defendant in *Dunbar* argued that the justification for the search-incident-to-arrest

exception did not apply after the officers had detained him and taken control of his bag, but the Pennsylvania Superior Court rejected those arguments, explaining that the defendant “was carrying the duffle bag over his shoulder *at the time the police had probable cause to arrest him.*” *Id.* at \*6 (emphasis added); *see also Guzman*, 417 Pa. Super. at 369-70 (upholding continued search incident to arrest at police barracks because the item searched “was subject to search and seizure at the time and place of arrest”). The rationale underlying this analysis is that there would be little point in holding that “an initially valid warrantless examination of [a container] could not be lawfully continued after [the suspect] had been placed under arrest and restrained.” *Commonwealth v. Henry*, 358 Pa. Super. 306, 315 (PA Super. 1986).

The analysis in *Dunbar* squarely governs the facts of this case. As defendant does not dispute, the officers had probable cause to arrest him in connection with the Brian Thompson shooting as soon as Officer Detwiler recognized him at 9:29 a.m., and that was supplemented by independent probable cause at 9:33 a.m., when the lack of a record for defendant’s driver’s license indicated that it was fake, such that defendant had violated Pennsylvania law. Throughout that time, defendant sat at the table while his backpack – which Officer Detwiler did not move until 9:41 – was on the floor next to his feet (PX 6B.1: 9:29:13-9:41:09). The bag was thus in defendant’s possession “at the time the police had probable cause to arrest him.” *Dunbar*, 2023 Pa. Super. Unpub. LEXIS 1673, at \*6; *see also Commonwealth v. Fitchett*, 2017 Pa. Super. Unpub. LEXIS 1578,

at \*2 & \*7 (PA Super. April 25, 2017) (holding that an arresting officer had the authority to search a bag that was “on the ground immediately next to” the arrestee).

Defendant is thus wrong to say that “Altoona law enforcement routinely violates search and seizure law and the Fourth Amendment by searching bags incident to a lawful arrest even if the bag is not within the defendant’s immediate control or grabbable area” (DMOL: 63). To the contrary, appellate authority such as *Williams*, *Dunbar*, and *Guzman* authorized the search of defendant’s backpack; and APD officers reasonably relied on that authority in searching defendant’s backpack at the McDonald’s. Their reasonable implementation of that authority in arresting defendant for violations of Pennsylvania law provides no basis for suppression.

**C. In any event, the Altoona officers’ conduct in searching defendant’s backpack at the McDonald’s comported with New York search-and-seizure law.**

In any event, although the APD officers were unfamiliar with the particulars of New York search-and-seizure law – including cases such as *People v. Gokey*, 60 N.Y.2d 309 (1983), which differ from Pennsylvania search-and-seizure law on whether a search incident to arrest can always include a search of a closed container – their search of defendant’s backpack at the McDonald’s in fact comported with New York search-and-seizure law because exigent circumstances justified the officers’ limited search of the backpack at the scene.

The Court of Appeals has stressed that

Courts simply must not, in this difficult area of street encounters between private citizens and law enforcement officers, attempt to dissect each individual act by the policemen; rather the events must be viewed and considered as a whole, remembering that reasonableness is the key principle when undertaking the task of balancing the competing interests presented.

*People v. Chestnut*, 51 N.Y.2d 14, 23 (1980). In keeping with that focus on reasonableness, the Court of Appeals has recognized that exigent circumstances may justify warrantless searches of closed containers incident to an arrest. *People v. Smith*, 59 N.Y.2d 454, 458 (1983). Courts employ an objective test to assess the existence of such exigent circumstances. *See, e.g., People v. Brooks*, 272 A.D.2d 194, 194 (1st Dep’t 2000). And the kinds of exigent circumstances that have been found to justify searches include concerns about the destruction of evidence (*see, e.g., People v. White*, 291 A.D.2d 250, 250 [1st Dep’t 2002]), concerns about the presence of a firearm (*see, e.g., People v. Chamlee*, 233 A.D.3d 496 [1st Dep’t 2024]; *People v. Bowden*, 87 A.D.3d 402, 405 [1st Dep’t 2011]), and concerns about the presence of explosives (*People v. Hughes*, 124 A.D.2d 344, 346 [3d Dep’t 1986]). In this case, at least two exigent circumstances supported the officers’ search of defendant’s backpack at the McDonald’s.

**1. The officers were reasonably concerned that defendant’s backpack contained explosives.**

First, the officers had an objectively reasonable concern that defendant’s backpack might contain explosives. Indeed, as BWC footage demonstrates, numerous officers expressly raised that concern at the McDonald’s. Corporal Trent mentioned

that the officers should make “sure there’s no bombs or anything in” the backpack before transporting it to the station (Wasser: 587; Fox: 818-19, 899; PX 6E1: 9:58:48-9:58:54). Officer Wasser – who had felt how heavy the backpack was – responded, “I don’t know. That’s why we want to make sure . . . there’s nothing that’s gonna . . .” (Wasser: 587-88; Fox: 819; PX 6E1: 9:58:54-9:58:58). When Officer Fox echoed that concern, Wasser replied, “I don’t want to pull a Moser,” referencing an APD officer named Moser who had once transported a bomb to the stationhouse (Wasser: 588-89; Fox: 819-20; Burns: 1057; PX 6E1: 9:59:00-9:59:06). While Wasser proceeded to search the backpack, Trent asked if she had “cleared it all” and suggested taking it to the stationhouse, but Wasser explained that she was still “making sure it’s not a bomb or anything in here before we put it in the car” (Wasser: 592; PX 6E1 & 6F1: 10:01:31-10:01:36). Even after the backpack had been transported to the stationhouse, Deputy Swope remained concerned about the possibility of a bomb, urging Wasser to make “sure there are no explosives in there” (PX 6F2: 10:23:20-10:23:23).

The fact that four separate officers shared the same concern about explosives demonstrates the reasonableness of that concern. And the particulars of this case explain why they each felt that concern. As APD officers were aware from news coverage, defendant was suspected of committing a murder in a carefully choreographed and sensational manner that was evidently designed to broadcast a political message to as wide an audience as possible. The target of the shooting was a health-insurance CEO; the shooting occurred close in time and place to the health

insurer's annual investors' conference in midtown Manhattan; and the shell casings left behind after the shooting were marked "deny," "delay," and "depose" – words commonly used to criticize health insurers' handling of claims (PX 12A; *see also* Detwiler: 178-88, 229; Wasser: 574-75, 577, 749; Fox: 776-82). As the court handling defendant's federal prosecution observed, those "circumstances clearly suggested at least the possibility of a political or ideological motive to send a public message, through the use of violence, about the health insurance industry," and the officers could not know "whether the Thompson murder was an isolated incident or was part of a larger plot contemplating further violence." *U.S. v. Mangione*, 2026 WL 247906, at \*5 (S.D.N.Y. Jan. 30, 2026); *see also U.S. v. Morillo*, 2009 WL 3254431, at \*7-\*8 (E.D.N.Y. Oct. 9, 2009).

Furthermore, shortly before the officers searched the backpack, defendant had produced a forged driver's license that demonstrated the amount of preparation he had undertaken for his flight. He was also in possession of a switchblade. And as Officer Wasser noticed when she first handled the backpack, it was heavy. Those concerns prompted the officers to ask defendant whether there was anything in his backpack that they needed to know about before they opened it (Detwiler: 249; Wasser: 585; Fox: 804; PX 6A3 & 6E1: 9:58:12-9:58:15). Defendant's refusal to answer did nothing to allay those concerns (Wasser: 585, 628-29, 672-73; Fox: 804-08; PX 6B1 & 6E1: 9:58:10-9:58:19).



Those circumstances all supported the reasonableness of the officers' concern that defendant's backpack might contain explosives. And because defendant was being taken into custody, the officers were confronted with the prospect of transporting a backpack that they reasonably feared contained explosives. The United States Supreme Court has expressly noted that, in such situations, officers have a sound justification for conducting a warrantless search of the item in question. In *United States v. Chadwick*, 433 U.S. 1 (1977), the Court opined that, "if officers have reason to believe that luggage contains some immediately dangerous instrumentality, such as explosives, it would be foolhardy to transport it to the station house without opening the luggage and disarming the weapon." *Id.* at 19 n.9. Officer Fox echoed this commonsensical observation at the hearing, testifying to the preferability of finding any explosives at the McDonald's rather than unknowingly transporting explosives and thereby risking detonation (Fox: 819). The evidence at the hearing thus established a reasonable concern that defendant's backpack contained explosives – an exigent circumstance that, under New York search-and-seizure law, justified a warrantless search of defendant's backpack regardless of whether it was within his reach. *Hughes*, 124 A.D.2d at 346 (finding that exigent circumstances justified warrantless searches of two cars that likely contained "a potentially explosive and dangerous device or devices").

Defendant dismisses the officers' stated concerns about explosives as "a blatantly false and pretextual justification for conducting an evidentiary search" (DMOL: 2-3, 54), but the record establishes the opposite. As detailed above in Point I.B, the APD

officers reasonably understood themselves to be operating under Pennsylvania search-and-seizure law; and Pennsylvania search-and-seizure law authorized them to search the backpack regardless of any exigency. *See Simonson*, 148 A.3d at 799. The officers thus had no reason to fabricate a case-specific exigency to serve as a pretext for searching the backpack at the McDonald's.<sup>19</sup>

The timing of the officers' statements further belies defendant's claims of pretext. BWC footage shows that Corporal Trent, Officer Wasser, and Officer Fox all voiced concerns about a bomb before 10:00:00 a.m. (Wasser: 587-89; Fox: 818-20, 899; PX 6E1: 9:58:48-9:59:06). But it was not until 10:01 a.m. that Wasser discovered the magazine in the backpack – the first obviously incriminating piece of evidence she found (PX 6E1, 10:01:06-10:01:10). Thus, as the defense would have it, the APD officers were fabricating a pretext that they did not think they needed for uncovering evidence that they did not yet know existed. The far more plausible explanation – and, indeed, the only explanation supported by the record – is that the APD officers were genuinely concerned about the possibility of explosives in the backpack.<sup>20</sup>

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<sup>19</sup> The same logic disposes of defendant's complaint that the officers' search of the backpack sometimes went into items that were too small to be a bomb (DMOL: 55-56). Because the officers reasonably understood themselves to be acting under Pennsylvania search-and-seizure law, they reasonably thought that they were authorized to carry out a general search incident to arrest. That understanding did not negate their genuine and reasonable concerns about the possibility of explosives in the backpack.

<sup>20</sup> Defendant stresses that Trent also suggested going through the backpack at the stationhouse and later opined that they were going to need to prepare a search  
(Continued...)

**2. The officers were reasonably concerned that defendant's backpack contained an operable firearm.**

Second, the officers had an objectively reasonable concern that there was an operable firearm in defendant's backpack. After all, defendant was a suspect in a shooting committed days earlier, and APD officers had seen press reports that the gun had not been recovered (Fox: 805).<sup>21</sup> To be sure, APD officers were more vocal about the risks of a bomb than about the risks of a gun, but both Wasser and Fox explained at the hearing that they were also concerned about the possibility of a gun in the backpack (Wasser: 627-28, 749-50, 752; Fox: 805, 875).

New York appellate courts have long recognized that, when officers reasonably suspect that a bag contains a firearm, they may search that bag incident to arrest – even if the arrestee has already been handcuffed. In *People v. Smith*, officers handcuffed a man, took possession of his briefcase, and then searched it. 59 N.Y.2d at 456. The hearing court suppressed the briefcase's contents because the arrestee was in handcuffs, leaving the police in “exclusive control” of the briefcase. *Id.* The Court of Appeals, however, rejected that analysis. It specified that container searches incident to arrest could be valid “even though the arrested person has been subdued and his closed container is

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warrant for the backpack (DMOL: 23, 25), but none of those comments undermines Trent's recognition that they should also check the backpack for explosives before transporting it to the stationhouse.

<sup>21</sup> Furthermore, by the time of the search, APD officers knew that defendant had provided them with a fake driver's license and had been carrying a switchblade.

within the exclusive control of the police.” *Id.* at 458. And it went on to uphold that search on the ground that the officers had reason to suspect that the arrestee was carrying a weapon. *Id.* at 459. The Court specified that “[w]hether in fact defendant could have had access to the briefcase at the moment it was being searched is irrelevant.” *Id.* at 459; *see also People v. Wylie*, 244 A.D.2d 247 (1st Dep’t 1997).

The First Department has adhered to that guidance. In *People v. Bowden*, police “secured” the arrestee, took her bag – which they suspected contained a gun – and then searched it. 87 A.D.3d at 405. The officers found a gun in the arrestee’s bag, but the hearing court suppressed it on the ground that no exigency justified the search. The First Department reversed because, whether or not the officers were concerned for their safety at the time of the search, the fact “that they had reason to suspect the presence of a gun at that moment [wa]s enough” to establish exigency. *Id.*

The First Department recently reaffirmed that analysis in *People v. Chamlee*, where officers searched a backpack that was on the ground a few feet from the arrestee, who was in handcuffs. 233 A.D.3d at 496. The hearing court upheld the search, explaining that exigency was established simply by the reasonable concern that the backpack contained a gun, which posed safety risks both if left unrecovered and if transported.<sup>22</sup> The First Department affirmed, holding that the search was justified simply because the

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<sup>22</sup> The People will provide the minutes of the hearing in *Chamlee* upon request.

officers “had reason to suspect that [the arrestee’s] backpack might contain a weapon.”  
233 A.D.3d at 496.

The guidance in *Smith*, *Bowden*, and *Chamlee* applies squarely to this case. Defendant urges, however, that *People v. Gokey*, 60 N.Y.2d 309 (1983), and its progeny require suppression of the evidence recovered from his backpack at the McDonald’s (DMOL: 39-43, 45-48). In particular, defendant stresses that officers had handcuffed him and secured the scene by the time that they began searching his backpack (DMOL: 45-48). But that is the exact argument that the First Department rejected in *Bowden*:

The hearing court’s reliance on *People v. Gokey* was misplaced. *Gokey* stands for the proposition that the police may not perform a warrantless search of a duffel bag simply because it had been within the grabbable area of a suspect at the time of his arrest. Importantly, in *Gokey* there was no concern about a gun, and the Court observed that the police left the bag on the ground when they arrested the defendant, indicating a lack of any sense of exigency.

87 A.D.3d at 405 (internal citations omitted). That analysis applies directly here. In this case, as in *Bowden*, the police reasonably suspected that there was a gun in the arrestee’s bag. And in this case, as in *Bowden*, that reasonable concern established exigency, regardless of defendant’s ability to get at the bag and its contents.

Furthermore, even if considerations such as grabbability were relevant to the analysis, the search of defendant’s backpack at the McDonald’s should be upheld. As explained above, grabbability is not at issue when officers suspect that an arrestee’s bag contains a firearm. But when courts in such cases nonetheless address grabbability, they

appear to construe “grabbable area” broadly, in apparent recognition of the dangers posed by firearms regardless of their precise location. *See, e.g., People v. Johnson*, 226 A.D.3d 521, 521 (1st Dep’t 2024) (finding that a bag underneath a bed was within the “grabbable area” of the arrestee, who was lying handcuffed on top of the bed); *People v. Wylie*, 244 A.D.2d 247, 251 (1st Dep’t 1997) (stressing the “realistic possibility” that “a determined arrestee” will, despite being handcuffed, use means other than his hands – such as kicking or shoving the arresting officer – to disrupt the arrest process in order to gain a weapon or destroy evidence”). From the time that APD officers arrived at the McDonald’s to the time that they began searching his backpack at the McDonald’s, defendant was no more than five feet from that backpack (PX 6A1 & 6B1: 9:29:05-9:29:09, 9:41:09-9:41:12; PX 6C1: 9:57:50-9:57:55; PX 6E1: 9:58:18-9:58:35). He was thus better positioned than the arrestee in *Johnson* to go for the backpack. And like the arrestee described in *Wylie*, his feet and legs were free, such that he was capable of kicking and shoving in an effort to reach his bag (Wasser: 750-51; Fox: 798-99).

Defendant instead likens this case to *People v. Morales*, 126 A.D.3d 43 (1st Dep’t 2015) (cited at DMOL: 42-43), but *Morales* only reinforces the commonsense conclusion that exigency arising from concerns about firearms differs from exigency arising from concerns about destruction of evidence. The arrestee in *Morales* had reportedly tried to steal from women’s purses in a restaurant, had failed to heed investigating officers’ instruction to keep his hands out of his pockets as they escorted him from the restaurant, and had then been handcuffed and placed in the back of a police car. 126

A.D.3d at 44-45. It was only then that the officers searched the arrestee's jacket – which was lying outside on the car's trunk – and found that it contained narcotics and a boxcutter. *Id.* Neither the nature of the crime nor any other circumstance gave the officers in *Morales* reason to suspect that the arrestee was carrying a firearm in his jacket, and any other kind of exigency – such as a concern about destruction of evidence – was eliminated by the fact that it was physically impossible for the arrestee to reach that jacket. The *Morales* decision thus does nothing to undermine the People's position in this case.

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In sum, there is no sound basis to suppress the evidence recovered from defendant's backpack at the McDonald's. APD officers acted reasonably and in good faith by following Pennsylvania search-and-seizure law when, at the McDonald's, they searched the backpack incident to defendant's arrest on Pennsylvania charges. And even under New York search-and-seizure law, that search was justified by exigency in the form of concerns about the possibility that there was a bomb in the backpack and concerns about the possibility that there was a gun in the backpack.<sup>23</sup>

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<sup>23</sup> Although either one of these rationales independently defeats defendant's request to suppress the evidence found in his backpack at the McDonald's, the People urge this Court to reach both of them in order to avoid limiting the considerations available to an appellate court in the future. *See generally People v. LaFontaine*, 92 N.Y.2d 470 (1998).

## POINT II

### **THE EVIDENCE RECOVERED FROM DEFENDANT'S BACKPACK AT THE ALTOONA STATIONHOUSE SHOULD NOT BE SUPPRESSED.**

Defendant also seeks suppression of evidence recovered from his backpack at the APD stationhouse, but that evidence – which included a handgun, a silencer, a red notebook, and various loose pieces of paper – was recovered through a proper inventory search. The New York Court of Appeals, the Pennsylvania Supreme Court, and the United States Supreme Court have long recognized an exception to the warrant requirement for inventory searches. *See People v. Gonzalez*, 62 N.Y.2d 386 (1984); *Commonwealth v. Scott*, 469 Pa. 258 (PA 1976); *South Dakota v. Opperman*, 428 U.S. 364 (1976).<sup>24</sup> Under that exception, police officers may conduct an inventory search – a search that “catalogue[s] the contents of the item searched” – in order to protect the arrestee’s property, protect law enforcement against claims of lost property, and protect law enforcement and others from dangerous instruments. *People v. Douglas*, 40 N.Y.3d 385, 388 (2023) (internal quotation marks omitted); *see also People v. Johnson*, 1 N.Y.3d 252, 256 (2003); *People v. Galak*, 80 N.Y.2d 715, 719 (1993). To qualify as an inventory search, a search must be conducted “in good faith” and in accordance with “a familiar routine procedure” that “limit[s] the discretion of the officer in the field.” *Douglas*, 40

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<sup>24</sup> Because Pennsylvania search-and-seizure law appears to be comparable to New York search-and-seizure law in the area of inventory searches, the People will focus on New York search-and-seizure law in this point.



N.Y.3d at 388 (internal quotation marks omitted). As detailed below, the evidence at the hearing firmly demonstrated that APD officers conducted a proper inventory search of defendant's backpack at the APD stationhouse.

**A. APD's established procedures were rationally designed to meet the objectives of inventory searches.**

First, the evidence showed that the APD had "established" and "standardized" procedures that were "rationally designed to meet the objectives" of inventory searches and that "limit[ed] the discretion of the officer in the field." *Johnson*, 1 N.Y.3d at 256. As Sergeant Burns explained at the hearing (Burns: 1104-1105), APD General Order 1.2.2(C)(1)(a)(1) requires officers to search "[t]he clothing worn by the [arrestee] and any bags or packages they may be in possession of at the time and place of arrest" (PX 10A). That provision goes on to specify that such searches may take place "as custody is passed from officer to officer or facility to facility" (PX 10A).

APD General Order 3.1.10(A) separately provides that APD officers must complete a "documented itemized inventory of all items taken from" an arrestee "at the time of booking prior to entry into the cell" (PX 10B). In order to complete such an inventory, an officer must divide the arrestee's possessions into two categories (Frye: 523; Wasser: 625-26, 757; Burns: 1054, 1095; Featherstone: 1270-71, 1281). One category – "personal property" – covers items that the arrestee cannot bring into his holding cell but that will be returned to him upon his release from custody or transferred with him to his next facility (Detwiler: 273; Frye: 424-25; Wasser: 605; Burns: 1054;

Featherstone: 1278; PX 10b at 3.1.10[A][1]-[2]). Officers sort through such items in the arrestee's presence and list them on a property receipt, which is presented to the arrestee for his signature (Frye: 408-12; Wasser 603-06; Burns: 1051-53; Heuston: 1170-72; Featherstone: 1269, 1272-73, 1277, 1283-84; PX 10B: 3.1.10[A][1][a]). Any such property is then bagged and stored in a locker with a number that corresponds to the arrestee's cell number (Wasser: 605-06; PX 10B: 3.1.10[A][2]).

The other category of possessions covers items that will not be returned to the arrestee because they are "[c]ontraband, evidence and/or illegal weapons" (Heuston: 1255-56; Featherstone: 1271; PX 10B: 3.1.10[A][2][a]). Such items are to be documented in an incident report, photographed, and placed in an evidence envelope that is labeled, sealed, and signed by both the vouchering officer and a supervisor (Wasser: 606-07, 757; Burns: 1055, 1057; Heuston: 1176, 1255-56; Featherstone: 1271-72, 1280; PX 10B: 3.1.10[A][2][a]). All evidence envelopes are labeled, assigned tracking numbers, and placed in an evidence locker (Featherstone: 1271-72, 1280).

As APD Evidence Custodian Featherstone explained at the hearing, these written orders left APD officers no discretion about whether to inventory an arrestee's possessions: the officers had to document every item in an arrestee's possession – whether "personal property" or "[c]ontraband, evidence and/or illegal weapons" – and process it accordingly (Featherstone: 1279-84). APD's written orders thus limited officers' discretion while also being reasonably designed to ensure that every item belonging to an arrestee was catalogued and stored appropriately, thereby safeguarding

the arrestee's property while also protecting APD from dangerous instrumentalities and claims of lost or damaged property. *People v. Brown*, 204 A.D.3d 418, 418-19 (1st Dep't 2022); *People v. Ramirez*, 103 A.D.3d 444, 444 (1st Dep't 2013).

**B. Officer Wasser properly began conducting an inventory search of defendant's backpack in the APD intake room.**

The record likewise establishes that APD officers conducted the inventory search of defendant's backpack in good faith while complying with APD's written orders as much as practicable under the circumstances. When Officer Wasser arrived at the stationhouse, she promptly placed the backpack on a chair in the intake room so that she could inventory it in defendant's presence in accordance with standard APD procedure (Wasser: 606, 609, 611, 614-15; PX 6B1: 10:16:20). But at the outset of the search, she found a gun in the backpack's side pocket, prompting Deputy Swope to instruct her to move the backpack into another room so as to eliminate any possibility that defendant could go for the gun (Wasser: 611-13; PX 6B2 & 6F2: 10:16:10-10:16:27). That sensible departure from the APD's written policies accorded with the standard practice throughout the department (Wasser: 612-13; Burns: 1117; Heuston: 1174, 1182; Featherstone: 1273) and in no way undermined the reasonableness of the inventory search. *See People v. Keita*, 162 A.D.3d 610, 610 (1st Dep't 2018) (upholding inventory search notwithstanding a "minor deviation from procedure" because that deviation did not undermine the search's reasonableness); *see also People v. Craddock*, 235

A.D.3d 1105, 1109 (3d Dep’t 2025) (finding “sufficient[ ] compli[ance]” with inventory procedures notwithstanding “minor deviations” from them).

Defendant resists this conclusion and instead urges the Court to find that, before this search occurred, Officers Wasser and Fox conspired to clandestinely search defendant’s backpack while transporting it from the McDonald’s to the stationhouse (DMOL: 59-61). There are at least two major flaws with that theory. First, the record does not support it. Defendant points to the fact that Wasser’s drive from McDonald’s to the stationhouse took two minutes longer than Officer Detwiler’s drive from McDonald’s to the stationhouse (DMOL: 59-61), but that fact is entirely unremarkable. And even if a two-minute discrepancy required explanation, it would be thoroughly explained by the testimony that, during her drive to the stationhouse, Wasser had to pull over to retrieve the McDonald’s bag containing some of defendant’s possessions from Fox (Wasser: 600-03, 714; Fox: 829-30, 907-08).<sup>25</sup> Defendant acknowledges this explanation but insists that it is not enough because the exchange between Fox and Wasser took only 10-40 seconds rather than a full two minutes (DMOL: 61). Defendant’s account, however, ignores the fact that simply slowing down, pulling over

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<sup>25</sup> As various witnesses explained at the hearing, Wasser and Fox were each driving to the stationhouse when Lieutenant Hanelly summoned Fox back to the McDonald’s, at which point Fox and Wasser each pulled over so that Fox could hand over the McDonald’s bag before returning to the McDonald’s (Wasser: 601-02, 712; Fox: 829-30, 907; Hanelly: 994; PX 4C: 10:12:18 [McDonald’s video showing Fox returning]).

to the side of the road, and coming to a stop would have added a minute or so to the journey. The duration of Wasser's drive from the McDonald's to the stationhouse thus provides no support for defendant's theory.

Second, defendant's theory lacks any basis in logic. After all, Officers Wasser and Fox had just searched defendant's backpack at the McDonald's – a search that, as explained above in Point I.B, they reasonably understood to be lawful. And they had every reason to expect that the backpack would be searched again at the stationhouse as part of a lawful inventory search. It is thus difficult to fathom why, knowing that they would soon be able to lawfully search the backpack, they would first search it in secret on the side of the road.<sup>26</sup>

**C. Officer Wasser properly continued the inventory search in the hallway next to the intake room.**

Officer Wasser then continued the inventory search in the hallway next to the intake room. After clearing the handgun and placing it in an evidence box specifically designed to store guns, Wasser went through the remaining items in the backpack, separating out items – including a silencer, the gun magazine that she had previously seen at the McDonald's, and a knife – to designate “evidence” and handing them to

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<sup>26</sup> Defendant also seeks support for his theory in the fact that Wasser turned on her BWC while walking through the stationhouse parking lot. According to defendant, she did so because she knew that the BWC audio would begin recording one minute later, just as she was finding the gun in defendant's backpack (DMOL: 61-62). Defendant does not explain why she would have cared whether the audio was recording at that moment, or why her supposedly staged discovery of the gun needed to be the very first thing captured by audio.

Deputy Swope, who in turn placed them in manila evidence envelopes with evidence labels on them (Wasser: 615-18, 764; PX 6F2, 10:18:06-10:18:17, 10:18:38-10:18:46, 10:20:15-10:20:40, 10:22:10). Wasser deemed other items – such as a disk, a bag of toiletries, and various pieces of clothing – to be “personal property” and kept them with the backpack (Wasser: 618-20, 761; PX 6F2, 10:22:46-10:22:50). When she came upon a red notebook, she opened it, looked through it, and reported, “It’s like a journal” (Wasser: 620-21; PX 6F2: 10:22:50-10:23:10). Deputy Swope responded by asking, “Bag it?” – a question that went to whether the notebook needed to be processed as “evidence” or as “personal property.” Officer Wasser answered, “I would” (Wasser: 735; PX 6F2: 10:23:10-10:23:13).

The record thus establishes that, contrary to defendant’s contention (DMOL: 63-66), Officer Wasser was following standard APD inventory procedure in good faith when, while searching defendant’s backpack in the hallway, she tried to separate items that appeared to be evidence from other items (Wasser: 760). After all, APD procedure required her to separate every item in defendant’s backpack into those categories so that they would be processed accordingly: evidence would be photographed, vouchered, and retained by law enforcement, whereas other items would simply be listed and stored until the arrestee’s transfer or release (PX 10b: 3.1.10[A][1]-[2]). Wasser’s responsibility to sort the backpack’s contents into those two categories did not render her search any less an inventory search. *See People v. McCray*, 195 A.D.3d 555,

557 (1st Dep’t 2021) (the fact that “one of the requirements of an inventory search is to remove any contraband” did not undermine the finding of a valid inventory search).<sup>27</sup>

The record likewise establishes that Wasser’s inventory search properly included an examination of the contents of the red notebook inside defendant’s backpack. Wasser needed to look through the notebook’s pages to determine whether to process it as evidence, and her genuine efforts to make that determination were demonstrated by her back-and-forth with Deputy Swope over how the notebook should be processed. She therefore properly reviewed the notebook’s contents as part of her inventory search. *See People v. Lawrence*, 180 A.D.3d 1070, 1071-72 (2d Dep’t 2020) (holding that inventory search justified officers’ opening of wallet and recovery of forged credit cards therein); *see also Commonwealth v. Stem*, 96 A.3d 407, 412 (PA Super. 2014) (observing that “a police officer may search a woman’s purse incident to arrest and, for example, review the contents of a date book that includes phone numbers and addresses”).

Defendant nevertheless claims that Wasser was not conducting a good-faith inventory search (DMOL: 63-64). He points to the fact that, while sifting through the backpack’s contents, Wasser kept in mind her colleagues’ request to locate defendant’s fake driver’s license, which he had handed to Officer Detwiler at the McDonald’s (PX

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<sup>27</sup> Wasser’s responsibility to sort the backpack’s contents into those two categories also thoroughly explains Sergeant Burns’s testimony that the search in the hallway “was merely to remove contraband or suspected weapons and items like that” (Burns: 1098) (cited at DMOL: 64 n.27). APD procedure required her to remove such items as part of an inventory search so that they could be processed appropriately.

6B at 9:29:40-9:29:43; PX 6F2: 10:17:55-10:18:05) and which had subsequently been placed with defendant's other belongings. But because APD had already lawfully recovered that fake driver's license when defendant handed it to Detwiler, there was no reason for Wasser to use an inventory search as a pretext for recovering it again.<sup>28</sup> In any event, her interest in locating that particular item did not negate her responsibility to inventory every item in the backpack. *See People v. Lee*, 29 N.Y.3d 1119, 1120 (2017) (inventory search upheld because "the primary objectives of the search were to preserve the property . . . and to protect police from a claim of lost property" and because the officers' knowledge "that contraband might be recovered" did "not invalidate the entire search" [internal quotation marks omitted]).

Defendant also faults Officer Wasser for pausing to photograph some groceries that had been in defendant's backpack (DMOL: 64). But the fact remains that, just as Officer Detwiler had already properly recovered the fake driver's license from defendant, Officer Wasser had already properly seen those groceries both while searching the backpack at the McDonald's and while carrying out her inventory search. Wasser's colleagues' request that she pause to photograph those items – which were not of obvious evidentiary value in the first place – did not transform the entire inventory search into something else. *People v. Padilla*, 21 N.Y.3d 268, 273 (2013)

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<sup>28</sup> Indeed, Wasser knew that APD had already recovered that driver's license because, while she was at the McDonald's, she confirmed that defendant had handed that license to Officer Detwiler (PX 6A2: 9:53:28-9:53:36; Wasser: 580-81).



(upholding inventory search during which an officer noticed that a car's seat panels were askew and, knowing that contraband is often hidden inside such panels, searched inside them).

Defendant's final criticism of Officer Wasser is that she did not make a written list of the items in the backpack as she was sorting through them (DMOL: 64-65). But she was not required to compile such a list at the exact same time that she was sorting through the backpack's contents. Defendant cites Sergeant Heuston's testimony that, during the intake process, an officer "generally" writes down each item recovered while placing it into a bag (DMOL: 65 [citing Heuston: 1190]), but Sergeant Heuston also specified that APD procedures allowed officers to write out inventory lists after sorting through all of an arrestee's possessions (Heuston: 1209, 1255; *see also* Burns: 1112; Featherstone: 1282). Given the many items in defendant's backpack, and given that APD procedures required different kinds of processing for different categories of items, it was reasonable for an officer to sort the items into the relevant categories before APD compiled a written list corresponding to each category. Indeed, the Court of Appeals has upheld an inventory search that did not yield an inventory list until 11 hours later. *See, e.g., Douglas*, 40 N.Y.3d at 389 (Rivera, J., explaining in dissent that the inventory search occurred 11 hours before the preparation of a list of items recovered); *see also People v. Echevarria*, 173 A.D.3d 638, 639 (1st Dep't 2019) (upholding inventory search because "delay in completing the inventory procedure was satisfactorily explained"). This inventory search yielded multiple written lists in much less time.

**D. Sergeant Heuston, Officer Featherstone, and Sergeant Burns properly completed the inventory search.**

After Officer Wasser finished sorting the items in defendant's backpack into "personal property" and "evidence," both categories of items were handed off to APD's evidence custodian, Officer Featherstone (Wasser: 624, 626, 740-42, 758-59; Featherstone: 1286). At about 10:40 a.m. – roughly 10 minutes after Wasser had finished sorting through the backpack's contents – Lieutenant Hanelly spoke to NYPD Detective Leonardi, who asked that APD hold all of defendant's property (Leonardi: 1407). That request meant that APD needed to process every item recovered from defendant as "evidence" (Heuston: 1191-92). Sergeant Heuston, Officer Featherstone, and Sergeant Burns then undertook the painstaking process of photographing each item, placing each item in an envelope, labeling each envelope, assigning a number to each envelope, and listing the items in various reports (Burns: 1056-70, 1307-08; Heuston: 1188, 1195-1208, 1232-33; Featherstone: 1288-1289, 1299-1300, 1303, 1307; PX 8A: 135-306 [172 photos taken by Burns]; PX 8B1-8B39 [39 photos taken by Heuston]; PX 9A [Featherstone handwritten list]; PX 9D [Featherstone incident report]; PX 9E [Heuston incident report]).

As various witnesses explained at the hearing, the officers began carrying out those tasks in Officer Featherstone's office, but the vast number of items in defendant's backpack required them to move the processing to a roll-call room upstairs (Burns: 1097; Heuston: 1233, 1254; Featherstone: 1293-1294, 1350, 1353, 1380). During that

processing, Officer Burns photographed the front and back of every page in the red notebook and every loose piece of paper, regardless of what writing – if any – appeared on it (Burns: 1056-1063; Featherstone: 1307, 1387; PX 8A: 135-271). In order to protect against claims of damage or tampering, Burns made sure that his photographs captured areas where pages appeared to have been torn out of the notebook (Burns: 1063-1064; Featherstone: 1307-1308; PX 8A, 250-255, 259-260).

The record thus powerfully establishes that APD inventoried every item recovered from defendant. The thoroughness of APD’s documentation – which included photographs of items as benign as a blank sheet of paper, loose change, and a CVS receipt (*see* PX 8A166, 8A293-8A294) – demonstrates that it was carried out in good faith. *See People v. Galak*, 80 N.Y.2d 715, 720 (1993) (stressing the importance of “a detailed and carefully recorded inventory” in assessing the validity of an inventory search); *People v. Noble*, 211 A.D.3d 970, 972 (2d Dep’t 2022) (upholding inventory search that resulted in “thoroughly cataloguing all of the items recovered”).

Defendant concedes that the continued examination of his backpack’s contents in Officer Featherstone’s office and the roll-call room yielded a proper inventory (DMOL: 66). He maintains, however, that no proper inventory search occurred because APD policies permitted inventory searches only of property removed from an arrestee’s person, not of containers in the arrestee’s possession (DMOL: 66-69). The record contradicts that claim. As detailed above in Point II.A, APD General Order 1.2.2(C)(1)(a)(1) requires officers to search “[t]he clothing worn by the person *and any*

*bags or packages they may be in possession of*” (PX 10A [emphasis added]). At the hearing, the defense seemed to suggest that this provision could not relate to inventory searches because it appeared under the heading “Search incident to arrest” (*see* Burns: 1105). But the substance of the provision – which references searches during transfers between facilities – clearly relates to inventory searches as well (PX 10A: 1.2.2[C][1][a][1][ii]). And that overlap makes sense because Pennsylvania courts describe inventory searches as a kind of search “incident to” arrest. *See, e.g., Commonwealth v. Nace*, 524 Pa. 323, 327 (1990) (describing an “inventory search” as a “routine administrative procedure at a police station house incident to booking and jailing the suspect” [internal quotation marks omitted]); *Commonwealth v. Smagala*, 383 Pa. Super. 466, 471 (PA Super. 1989) (referencing a “valid inventory search incident to a lawful arrest”).<sup>29</sup>

Defendant’s suggestion that the APD Policies and Procedures do not provide for inventory searches of containers also flies in the face of common sense. After all, the objectives of inventory searches apply equally to all property taken from an arrestee, regardless of whether it was in a container.

Defendant also claims that the scope of the search in Officer Featherstone’s office and the roll-call room exceeded the scope of a proper inventory search because

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<sup>29</sup> This usage also demonstrates the insignificance of defendant’s complaint that some APD witnesses described the inventory search in this case as both an “inventory search” and a search “incident to arrest” (*see* DMOL: 64-65 n.27 [citing Burns: 1098; Heuston: 1170, 1253]).

APD officers read the contents of the red notebook and loose papers. According to defendant, the act of reading demonstrated that the officers were using the inventory search merely as a “pretext to search for evidence that they believed would be helpful to the New York investigation” (DMOL: 69-71). That argument overlooks two crucial considerations. First, by the time that the red notebook arrived in Featherstone’s office, Officer Wasser had already surveyed its contents in order to assess whether it should be processed as personal property or as evidence (*see* Point II. D). Any expectation of privacy that defendant had once had in the notebook had therefore vanished. *See U.S. v. Johns*, 469 U.S. 478, 486 (1985) (explaining that, after Customs officers lawfully conducted a warrantless search, DEA officers could subsequently conduct such a search); *People v. Batista*, 209 A.D.2d 326, 326 (1st Dep’t 1994) (citing *Johns* for the proposition that a second warrantless search of a car did not constitute “an invasion of [the defendant’s] right to privacy”).

Second, the evidence at the hearing made clear that, far from being a “pretext to search for evidence” (DMOL: 71), the review of defendant’s backpack’s contents in Officer Featherstone’s office and the roll-call room yielded comprehensive documentation of every item in that backpack, regardless of any apparent evidentiary value. Were the officers in fact using the inventory process as a mere pretext to search for evidence, they would not have bothered photographing a blank sheet of paper or loose change (PX 8A: 166, 294). This fact readily distinguishes this case from *People v. Sommerville*, 170 Misc.2d 1024 (Kings County Sup. Ct. 1996) (cited at DMOL: 69-71),

and *United States v. Santos*, 961 F. Supp. 71 (S.D.N.Y. 1997) (cited at DMOL: 71). In *Sommerville*, the hearing court decided that, when an officer scrutinized certain “minute” calendar-book entries that “might be significant to his investigation,” his “sole purpose” in doing so was investigative, thus undermining any inventory justification. 170 Misc.2d at 1025, 1027. And in *Santos*, the hearing court found that the investigator “read defendant’s books and letters in order to discover incriminating evidence.” 961 F. Supp. at 74. That analysis does not apply here because APD officers demonstrated their good-faith efforts to conduct a thorough inventory by photographing every piece of paper recovered from defendant, regardless of whether it had any apparent relevance to any investigation. *Noble*, 211 A.D.3d at 972.<sup>30</sup> That approach was particularly sensible given that some of the pages in the notebook appeared to have been torn out, necessitating documentation of every page in order to demonstrate that APD officers had not tampered with the notebook in any way (Burns: 1063-64; Featherstone: 1307-1308; PX 8A250-8A255, 8A259-8A260).

Defendant additionally criticizes Sergeant Heuston because, during the inventory process, he noticed some of defendant’s writings, photographed them, and sent them to NYPD officers (DMOL: 69). But again, by the time that Heuston looked inside the notebook, Officer Wasser had already looked inside it, thereby eliminating any

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<sup>30</sup> Indeed, most of the pages of the red notebook had no such relevance (*see, e.g.*, PX 8A195-8A198).

expectation of privacy defendant had ever have had in it. *Johns*, 469 U.S. at 486; *Batista*, 209 A.D.2d at 326. In any event, as the Court of Appeals has recognized, an officer can participate in a good-faith inventory search without ignoring the potential evidentiary significance of some of the items it reveals. *See Padilla*, 21 N.Y.3d at 273; *People v. Johnson*, 1 N.Y.3d at 256 (explaining that, although the discovery of incriminating evidence cannot be the purpose of an inventory search, it is a perfectly valid “consequence” of an inventory search).

Finally, defendant repeatedly cites to the testimony of APD Deputy John Snyder at a hearing for defendant’s federal prosecution (DMOL: 63 n.26, 67 n.28, 69 n.30). Needless to say, that testimony – which took place before a different judge in a different court with a different universe of issues at stake – is outside the record and therefore not a permissible basis for this Court’s ruling in this case. In any event, an examination of that testimony demonstrates the dangers of relying on material outside the record. For example, defendant cites page 65 of Snyder’s testimony for the proposition that “Altoona procedure for inventory searches would require officers to seek a warrant if a firearm was recovered during an inventory search” (DMOL: 63 n.26). In the cited testimony, defense counsel read aloud a subsection of APD General Order 1.2 that read, “If during an inventory search, evidence of a crime is discovered, the officer shall stop the inventory search and secure a search warrant prior to continuing,” and Snyder confirmed that counsel had read that provision correctly. But an examination of that subsection of APD General Order 1.2 – which was also introduced at the hearing in

this case – demonstrates that the relevant provision relates only to inventory searches of cars that have been impounded or towed (*see* PX 10A: 1.2.3[C][1][b][5] [entitled “Impound Inventory Search”]). Snyder’s testimony at the federal hearing thus does not undermine the conclusion that APD officers conducted a proper inventory search, and indeed, the federal court found that “the search of the Backpack at the Altoona police department was consistent with the written regulations and standard practices for an inventory search.” *U.S. v. Mangione*, 2026 U.S. Dist. LEXIS 18122, at \*15 (S.D.N.Y. Jan. 30, 2026).

### POINT III

#### **THE SEARCH WARRANT FOR DEFENDANT’S BACKPACK PROVIDES AN INDEPENDENT BASIS FOR ADMITTING THE BACKPACK’S CONTENTS.**

Regardless of the lawfulness of the above-described searches of defendant’s backpack, the backpack’s contents are admissible under the independent-source doctrine. When police officers’ recovery of evidence is unlawful in some way, “the facts thus obtained” do not “become sacred and inaccessible.” *People v. Arnau*, 58 N.Y.2d 27, 32-33 (1982) (internal quotation marks omitted). The People may still introduce those facts as long as “knowledge of them is gained from an independent source.” *Id.*; *see also* *People v. Vazquez*, 159 A.D.3d 517, 517 (1st Dep’t 2018). The rationale underlying the doctrine is that, while police officers should not be able to profit from a search-and-seizure error, they also should not be placed in a worse position than they would have



been in absent such an error. As the Court of Appeals has explained, the exclusionary rule “exacts a heavy price,” and for that reason, it should apply only to “evidence which has been come at by exploitation” of an illegality. *Arnau*, 58 N.Y.2d at 32 (internal quotation marks omitted). Thus, when police obtain a facially valid warrant after conducting an unlawful search, suppression is required only if the defendant demonstrates that procurement of the warrant “was causally related to the illegal police conduct.” *Arnau*, 58 N.Y.2d at 32. Defendant cannot meet that burden here.

At 6:00 p.m. on the day of the arrest, Sergeant Heuston obtained a search warrant for the contents of defendant’s backpack (PX 12A). In his application for that search warrant, Heuston detailed: that defendant’s appearance matched the appearance of the person captured in the surveillance stills shown in the news; that he had learned from NYPD Detective Oscar Diaz how those surveillance stills showed Brian Thompson’s shooter; that he had learned from Detective Diaz about the markings on the shell casings from the shooting, about the victim’s position as a health-insurance CEO, and about the shooter’s flight on a bicycle; that defendant had provided a fake driver’s license to Officer Detwiler that morning; and that defendant was in possession of the backpack that morning (PX 12A: 2-3). That information, standing alone, provided probable cause to support the issuance of the search warrant. *See People v. Oliveira*, 2 A.D.3d 122, 123 (1st Dep’t 2003) (finding probable cause to support search warrants in murder case because “it was reasonable to infer” that evidence of the crimes “would most likely be in defendant’s residence or gym bag only three weeks after the murder”).

To be sure, the warrant application also listed items that had already been recovered from defendant's backpack during previous searches (PX 12A: 3-4). But that information was not necessary to establish probable cause to support the warrant, and it therefore did not invalidate the warrant. *See Arnau*, 58 N.Y.2d at 33 n.1 (explaining that "[t]he validity of a warrant . . . depends on whether the untainted information, considered by itself, establishes probable cause for the warrant to issue"); *People v. Plevy*, 52 N.Y.2d 58, 67 (1980) (upholding search warrant because, even ignoring the potentially tainted information in a warrant application, the remaining information in that application still established probable cause); *People v. Seidita*, 49 N.Y.2d 755, 757 (1980). The search warrant that the APD obtained for the backpack was thus valid, regardless of what the APD had seen during the warrantless searches of the backpack.

That search warrant provided an independent basis for recovering the items in defendant's backpack. *See People v. Richardson*, 9 A.D.3d 783, 788 (3d Dep't 2004) (applying independent-source doctrine to evidence that "was seized pursuant to a valid search warrant which was based upon sufficient untainted information"). And that independent basis defeats defendant's request to suppress the items in his backpack, regardless of the lawfulness of the earlier searches of that backpack. *See People v. Hill*, 153 A.D.3d 413, 418 (1st Dep't 2017) (applying the independent-source doctrine because, absent an unlawful search, a detective "was likely to continue investigating defendant as a possible suspect," which would have led to the information that provided the independent source for the challenged evidence).

Defendant may respond to this argument by claiming that the warrantless searches of the backpack were “confirmatory searches” – unlawful searches that the officers carried out “to assure themselves that there is cause to obtain a warrant.” *See People v. Burr*, 70 N.Y.2d 354, 362 (1987). But the record refutes any such claim. Indeed, as detailed above in Points I and II, APD officers believed – reasonably, in good faith, and correctly – that their earlier searches of the backpack were lawful. Because they did not think that they needed a warrant to search the backpack, their warrantless searches of the backpack cannot have been designed to assess whether they should later apply for such a warrant. Sergeant Heuston’s hearing testimony reinforces this conclusion. He explained that the reason that APD applied for a search warrant was that it needed judicial authorization to transfer the property in question to NYPD (Heuston: 1213; *see also* Hanelly: 1024-25). The decision to obtain the warrant was thus not motivated by an interest in justifying APD’s previous searches, but rather only to ensure a seamless transfer of the property to another police department. *See People v. Solano*, 138 A.D.3d 525, 526 (1st Dep’t 2016) (no confirmatory search because “[t]he decision to obtain a warrant was not prompted by what was discovered in the initial search”).

Regardless of any asserted problems with the warrantless searches of defendant’s backpack, the search warrant was validly issued, and it provided an independent source for recovering the items therein. Those items are therefore not subject to suppression.

## POINT IV

### **DEFENDANT'S STATEMENTS TO ALTOONA POLICE OFFICERS AND PENNSYLVANIA CORRECTIONS OFFICERS SHOULD NOT BE SUPPRESSED.**

Defendant also moves to suppress many of his statements in the McDonald's as well as some of his subsequent statements to corrections officers (DMOL: 73-85). An examination of the record, however, reveals that none of the statements in question is suppressible.

Preliminarily, as defendant concedes (DMOL: 78 n.33), his initial statements to Officer Detwiler at the McDonald's – providing the false name Mark Rosario, stating that he was from New Jersey, and admitting that he had recently been in New York – are all admissible. Among other reasons, those statements were made when defendant was not yet in custody. As detailed below, defendant's subsequent statements at the McDonald's are likewise admissible.

#### **A. Defendant was not in custody for *Miranda* purposes until after he had received *Miranda* warnings.**

First, defendant was not in custody – and therefore not subject to custodial interrogation – until after he had received *Miranda* warnings. To find that a person is in custody for *Miranda* purposes, a court must find both (1) that “a reasonable person innocent of any wrongdoing would have believed that he or she was not free to leave,” and (2) that “there has been a forcible seizure which curtails a person's freedom of action to the degree associated with a formal arrest.” *People v. Cabrera*, 41 N.Y.3d 35, 52

(2023) (internal quotation marks omitted). Contrary to defendant’s suggestion (DMOL: 75), custody is not established simply because the person who is seized may not feel – and, in fact, may not be – free to leave. *See, e.g., Berkemer v. McCarty*, 468 U.S. 420, 436, 439-40 (1984) (no *Miranda* custody even though “few motorists would feel free . . . to leave the scene of a traffic stop”); *U.S. v. Newton*, 369 F.3d 659, 672 (2d Cir. 2004) (for *Miranda* custody, there must be the kinds of restrictions “associated with a formal arrest” “in addition to not feeling free to leave”). Thus, “[w]hen a seizure of a person remains at the stop and frisk inquiry level and does not constitute a restraint . . . of the degree associated with a formal arrest, *Miranda* warnings need not be given prior to questioning.” *People v. Bennett*, 70 N.Y.2d 891, 894 (1987).

**1. Defendant was not in custody between 9:31 a.m. and 9:41 a.m.**

Defendant claims that he was first in custody at 9:30:59 a.m. (DMOL: 78), but over the ensuing 10 minutes, he was simply sitting in a restaurant and occasionally eating his food in the presence of two police officers. None of those circumstances amounted to the type of restraint associated with a formal arrest. What is more, those officers had assured defendant that they had been called to the McDonald’s because he had stayed too long, that they were just running his driver’s license, and that they would then leave (Detwiler: 207-13, 223; PX 6A1 & 6B1: 9:33:22-9:33:35, 9:36:03-09:36:10, 9:36:22-

9:37:07, 9:38:44-9:38:46, 9:38:54-9:39:06, 9:39:29-9:39:32, 9:40:13-9:40:26).<sup>31</sup> A reasonable innocent person would have had no reason to disbelieve those statements and thus would have had no reason to think that he was in custody. Even if a reasonable innocent person might have thought that he was temporarily detained at that point, such a temporary detention would not have called for the delivery of *Miranda* warnings. *See People v. Alls*, 83 N.Y.2d 94, 99 (1993) (temporary detention generally does “not involve the kind of inherently coercive atmosphere with which *Miranda* was most concerned”).

In fact, defendant himself – despite knowing that he was wanted for a shooting – appears to have believed Officer Detwiler’s statements about the officers’ plans. In response to Detwiler’s explanation, defendant noted that he had not been at the McDonald’s for long, said that McDonald’s staff should have just told him about the problem, and asked what he should do next time (PX 6A1 & 6B1: 9:36:10-9:36:22, 9:38:54-9:39:06). Of course, Detwiler had no intention of actually allowing defendant to leave, but that fact is irrelevant for assessing whether defendant was in custody for *Miranda* purposes. *People v. Hernandez*, 217 A.D.3d 460, 460 (1st Dep’t 2023) (finding no custody because, “[r]egardless of the marshals’ unstated intention, their words and

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<sup>31</sup> Defendant seems to fault Officer Detwiler for lying about why he was there (DMOL: 9), but as Detwiler explained at the hearing, he provided that false explanation in order to avoid escalating the situation (Detwiler: 208-211, 319-320). There was nothing unlawful about Detwiler’s doing so. *See People v. Tarsia*, 50 N.Y.2d 1 (1980); *People v. Matias*, 2026 WL 199542 (1st Dep’t Jan. 27, 2026).

actions did not convey to defendant reason to believe that he had been placed in custody” [internal citations omitted]).

## **2. Defendant still was not in custody between 9:41 a.m. and 9:47 a.m.**

At about 9:41 a.m., other APD officers began to arrive, but several of them gathered outside the McDonald’s to talk (PX 6A1). Defendant was thus in the presence of only three officers – Officers McCoy, Frye, and Yeager – at the time of his statements between 9:42:48 a.m. and 9:44:09 a.m. (PX 6B1: 9:42:48-9:44:07). During that brief period, McCoy did not ask defendant anything accusatory; defendant remained seated at the table; he was not handcuffed or shackled; and no officer was touching him. A reasonable innocent person in that situation still would not have thought that he was in custody. *See People v. Hernandez*, 181 A.D.3d 530, 530-31 (1st Dep’t 2020) (finding no custody because, although detectives brought him to a police station, he was not locked or restrained, he was told that he was free to leave, and the detectives’ questions were not hostile); *People v. Dillhunt*, 41 A.D.3d 216, 216-17 (1st Dep’t 2007) (finding no custody because, although a detective questioned him at a police station for 30 minutes and showed him a police report implicating him in a crime, a reasonable person “would have believed that the police were still in the process of gathering information about the alleged incident prior to taking any action”).

**3. Defendant still was not in custody between 9:47 a.m. and 9:48 a.m., when he received *Miranda* warnings.**

Defendant's status remained unchanged at 9:47 a.m., when Officer Detwiler gave him "false ID warnings." Those warnings specified that defendant was "under official police investigation" and that, if he gave them a false name again, he would "be arrested for false ID" (PX 6A: 9:47:02-9:47:08). Officers then asked defendant about his true identity, the name he had previously given, and the identification he had previously provided (PX 6A: 9:47:09-9:48:27). By that time, the number of officers around defendant had increased, but he was still in his seat at the McDonald's, no officers had mentioned the New York City murder, there were no restraints on his hands or legs, and no officers had drawn their weapons. *People v. Clarke*, 157 A.D.3d 616, 616 (1st Dep't 2018) (finding no custody because, "[a]lthough several officers were present, they did not have their guns drawn [and] did not handcuff or restrain defendant"). Furthermore, he had just been told that he was under investigation and would be placed under arrest if he lied about his identity. Under those circumstances, a reasonable innocent person would not have understood himself to be in custody, believing instead "that the police were still in the process of gathering information about the alleged incident prior to taking any action." *Dillhunt*, 41 A.D.3d at 216-17. And indeed, defendant himself seemed to think as much: he subsequently asked why so many officers were there (PX B1: 9:56:29-9:56:31).

At 9:48:32, Officer Fox delivered *Miranda* warnings to defendant.



**B. Defendant's pedigree statements are admissible regardless of whether he was in custody.**

Regardless of whether defendant was in custody for *Miranda* purposes, many of his statements to APD officers are admissible under *Miranda*'s pedigree exception. In *People v. Wortham*, 37 N.Y.3d 407 (2021), the Court of Appeals explained that “pedigree questions” – requests for pedigree information such as name, date of birth, and address – generally do not require *Miranda* warnings. *Id.* at 413-14. That exception squarely applies to all of defendant's statements about his identity, his date of birth, where he was from, and the identifications he was carrying. *See People v. Jimenez*, 217 A.D.3d 586, 587 (1st Dep't 2023) (applying pedigree exception to statements “consisting of one of [the defendant's] aliases, followed by his true name”); *People v. Mays*, 190 Misc.2d 310 (N.Y. County Sup. Ct. 2001) (applying pedigree exception to defendant's admission that the driver's license he had provided was forged), *aff'd at People v. Mays*, 10 A.D.3d 556, 557 (1st Dep't 2004) (upholding the defendant's appeal waiver before stating, “were we to find that defendant's waiver was invalid, we would find that the court properly denied defendant's motion to suppress”).

**C. Defendant's various spontaneous statements are admissible regardless of whether he was in custody.**

Defendant's spontaneous statements to APD officers at the McDonald's are likewise admissible regardless of whether he was in custody. “Volunteered statements are admissible provided the defendant spoke with genuine spontaneity” and not in response to any “inducement, provocation, encouragement or acquiescence.” *People v.*

*Rivers*, 56 N.Y.2d 476 (1982) (internal quotation marks omitted); *see also People v. Hightower*, 154 A.D.3d 636 (1st Dep’t 2017). That description captures many of the statements that defendant now challenges.

In particular, defendant seeks suppression of his statements that he had not been in the McDonald’s long, that he wished a McDonald’s employee would have said something to him, and that he would like advice about what to do next time (DMOL: 79), but none of those statements were prompted by interrogation. Officer Detwiler tried to avoid escalating the encounter with defendant by stating that McDonald’s staff had called the police because defendant had stayed there too long (Detwiler: 208-211, 319-320). That statement did not call for any response from defendant, much less seek to elicit any incriminating statements from him. Defendant’s subsequent complaints that the McDonald’s staff had been too quick to contact the police are therefore admissible. *See Hightower*, 154 A.D.3d at 636 (upholding admission of “a spontaneous, freely volunteered utterance that was unprompted by any police interrogation or the functional equivalent thereof”).

That logic applies even more clearly to some of defendant’s subsequent statements. At 9:44 a.m., defendant teased Officer McCoy about the number of police officers at the McDonald’s, stating, “Calling a couple more cars? This is a puffy jacket. I’m not very big” (PX B1: 9:44:04-9:44:08). And at 9:56 a.m., defendant – who by then had already received *Miranda* warnings – asked McCoy, “[C]an I ask why there’s so many

cops here?” (PX B1: 9:56:29-9:56:31). Because no officer had said anything to elicit those statements, defendant’s request to suppress them (DMOL: 81) must be denied.

**D. Defendant’s statements in response to officers’ safety-related questions and requests are admissible regardless of whether he was in custody.**

Defendant goes on to seek suppression of statements he made in response to safety-related questions or requests from APD officers. For instance, defendant challenges the admissibility of his statement, “Sure thing” in response to Officer Fox’s request that he stand up for a pat-down (DMOL: 82), but defendant does not explain how such a request could constitute interrogation. In any event, when officers asked defendant whether he had any weapons or whether particular items belonged to him, those questions were permitted under *Miranda*’s safety exception, which authorizes officers to ask suspects questions reasonably prompted by safety concerns. *See New York v. Quarles*, 467 U.S. 649, 650 (1984); *Matter of Tomicko*, 272 A.D.2d 155, 155 (1st Dep’t 2000) (no *Miranda* violation when officer asked “do you have anything on you?” to suspect in custody). Given the crime of which defendant was suspected, and given that the officers were lawfully frisking him and handling his belongings, such requests and questions were thoroughly justified by safety concerns. *See People v. Johnson*, 46 A.D.3d 276, 277-78 (1st Dep’t 2007) (finding that safety concerns justified detectives’ questions about weapons to an arrestee who was suspected of an armed robbery).

**E. Defendant's statements to prison guards at SCI Huntingdon are admissible.**

After his arrest, defendant spent 10 days at Pennsylvania's SCI Huntingdon Correctional Institution, a state prison where he could receive greater security monitoring than at a local jail (Rivers: 81). Defendant was housed in "Rear D" – a small group of cells reserved for at-risk inmates where he was constantly monitored by corrections officers, who had to fill out forms memorializing his movements seven times an hour (Rivers: 78-82; Henry: 135, 139-40). During that time, defendant made various statements to corrections officers who were monitoring him. Defendant now seeks suppression of those statements (DMOL: 83-85), but the record refutes defendant's arguments for suppression.<sup>32</sup>

**1. As Corrections Officer Henry credibly testified, defendant's statements to him were spontaneous.**

While being monitored by Corrections Officer Henry, defendant said that he had been arrested in a McDonald's and that his backpack contained a 3D-printed handgun (Henry: 137, 147). As Henry's uncontradicted testimony demonstrates, none of those statements were prompted by any questioning (Henry: 136-38, 147-50). Henry

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<sup>32</sup> In seeking suppression of these statements, defendant seems to challenge whether he made these statements in the first place (DMOL: 83). But any question about whether defendant actually said these things is for the trial jury, not the suppression court. *People v. Washington*, 51 N.Y.2d 214, 221-22 (1980) (finding "no reason why a disputed claim of fabricated evidence, involving only the credibility of witnesses, may not be resolved in the usual manner, by submitting the matter to the jury at trial"); *People v. Leibert*, 228 A.D.3d 489, 490 (1st Dep't 2024).

consistently testified, both on direct and on cross, that he did not speak to defendant, much less question him (Henry: 136-38, 147-50). The record thus provides no basis for finding that Henry did anything to prompt defendant to speak to him.

Defendant nonetheless asks the Court to suppress these statements on the ground that Corrections Officer Henry's testimony was not credible because it was not plausible (DMOL: 84-85). But there was nothing implausible about Henry's testimony. Defendant stresses that it was not until a January 2, 2025 interview with the Manhattan District Attorney's Office that Henry told anybody about defendant's statements about the pistol (DMOL: 83). That fact, however, only corroborates Henry's steadfast testimony that he had no interest in this case or in conversing with anybody – including defendant – about it (Henry: 164). Henry's lack of interest in this case was also apparent from his demeanor at the hearing. He candidly described himself as “agitated” about having to appear in court (Henry: 133). And his terse testimony on both direct and cross confirmed that he was simply a man of few words – precisely the kind of corrections officer who would sit silently while an inmate rambled at him (*see* Henry: 133-65).

Finally, the substance of defendant's statements to Corrections Officer Henry is not so implausible as defendant suggests. After all, even at that early stage of this prosecution, defendant must have recognized the strength of the evidence against him. Defendant knew that police had recovered his backpack; he knew that it contained the murder weapon and silencer he had used in killing Brian Thompson; he knew that it contained the manifesto in which he had crowed about his plan to “wack [sic] the CEO

at the annual parasitic bean-counter convention” and fantasized about the headlines it would generate; and he knew that it contained a letter he had addressed “to the Feds” about how the assassination “had to be done” because “these parasites had it coming.” The strength of that evidence was presumably on defendant’s mind when he mentioned the backpack and 3D-printed pistol to Henry; and he was aware that he was not revealing anything that investigators did not already know.

There is no basis for disbelieving Corrections Officer Henry’s consistent and uncontradicted testimony, which establishes that defendant’s statements to Henry were spontaneous and therefore should not be suppressed.

**2. Defendant’s statements to Corrections Officer Rivers were not the product of inducement, provocation, or encouragement.**

Corrections Officer Rivers also monitored defendant in Rear D (Rivers: 78). While Rivers was on duty, he and defendant engaged in casual conversations on a variety of subjects, including travel, healthcare, and books (Rivers: 87-89, 94-96, 106). At one point, defendant asked Rivers how he was being perceived in the media, prompting Rivers to respond that the media seemed focused on the crime, but that social media seemed focused on the wrongdoings of the healthcare industry (Rivers: 90). Defendant also said that he had heard that he was being compared to Ted Kaczynski because he had reviewed one of Kaczynski’s books on Google or Goodreads – all facts that Rivers had no prior knowledge of (Rivers: 90-91). And defendant mentioned that he wanted to make a statement to the public (Rivers: 91).

All of those statements are admissible. To be sure, Corrections Officer Rivers appears to have been more willing than Corrections Officer Henry to chat with defendant. But the mere fact that Rivers exchanged words with defendant does not render defendant's statements inadmissible.

The questioning of an inmate does not automatically constitute custodial interrogation for *Miranda* purposes. Rather, *Miranda* warnings are required only when there are restrictions on an inmate's freedom "over and above ordinary confinement in a correctional facility." See *People v. Alls*, 83 N.Y.2d 94, 100 (1993); *People v. Busanet*, 79 A.D.3d 600 (1st Dep't 2010). Defendant appears to recognize that the circumstances surrounding his statements to Corrections Officer Rivers did not satisfy those requirements, as he does not seek suppression under *Miranda* (see DMOL: 83-84).

Defendant instead argues that Corrections Officer Rivers violated his right to counsel by chatting with him (DMOL: 83-84). To be sure, when an inmate is represented on a pending charge, custodial interrogation about any subject must cease in the absence of a counseled waiver. See *People v. Burdo*, 91 N.Y.2d 146, 150 (1997). Even a voluntary statement, not made in response to express questioning by investigators, will not necessarily be admissible. Rather, the statements of an inmate who is represented on a pending charge can be admitted only if they "were in no way the product of an interrogation environment, the result of express questioning or the functional equivalent." *People v. Stoesser*, 53 N.Y.2d 648, 650 (1981); *People v. Sierra*, 85

A.D.3d 1659, 1660 (4th Dep’t 2011); *People v. Gamble*, 129 A.D.2d 470, 483 (1st Dep’t 1987).

The testimony of Corrections Officer Rivers demonstrates that his casual conversations with defendant involved neither an “interrogation environment” nor “express questioning or the functional equivalent.” As Rivers explained at the hearing, he had no interest in this case (Rivers: 80 [“I don’t care”]). And although defendant criticizes Rivers for not memorializing their conversations (DMOL: 83), that fact only demonstrates that Rivers was indeed engaging in “[c]asual, natural” conversation rather than seeking to elicit incriminating information (Rivers: 87). The range of topics covered in their conversations – from travel, to nationalized healthcare, to book recommendations – strengthens the conclusion that Rivers made no effort to elicit any particular kind of information from defendant. And insofar as defendant’s statements touched on matters relating to this case, the substance of those statements – such as his question about how the media was portraying him and his complaint about being compared to Ted Kaczynski (Rivers: 89-91) – corroborates Rivers’s testimony that defendant simply volunteered them. Furthermore, the absence of any discussion of the actual crime reinforces the conclusion that Rivers made no effort to elicit information on that subject.

The record thus establishes that, rather than responding to interrogation or its functional equivalent, defendant was simply passing the time by chatting with a prison guard. Defendant’s statements to Corrections Officer Rivers are therefore admissible.



## CONCLUSION

Defendant's motion should be denied in its entirety.

Dated: New York, New York  
March 2, 2026

*Joel J. Seidemann*

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**SUPREME COURT OF THE STATE OF NEW YORK  
NEW YORK COUNTY: CRIMINAL TERM PART 32**

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**THE PEOPLE OF THE STATE OF NEW YORK,**

**Respondent,**

**-against-**

**LUIGI MANGIONE,**

**Defendant-Movant.**

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**POST-HEARING MEMORANDUM OF LAW IN OPPOSITION TO  
DEFENDANT'S MOTION TO SUPPRESS**

**Ind. No. 75657/2024**

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